bdcp

BLACKTOWN DEVELOPMENT CONTROL PLAN

2015

Part C

Development in the Residential Areas

Blacktown City Council

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1 Introduction

This Part of Blacktown Development Control Plan (DCP) 2015 should be read in conjunction with Part A (Introduction and General Guidelines). Section 1.5 of Part A contains a list of other Parts of the DCP that may also be relevant to your proposal.

It is noted that site-specific development controls apply to the following residential areas:

(a) Stonecutters Ridge (refer to Part L)
(b) The Ponds (refer to Part M)
(c) Ashlar Precinct (refer to Part N).

This Part of the DCP should also be read in conjunction with the Blacktown Local Environmental Plan (LEP) 2015 Written Instrument and associated LEP Maps.

1.1 Land to which this Part applies

This Part of the DCP applies to all land within the Blacktown Local Government Area zoned for residential purposes under Blacktown LEP 2015. Your attention is also drawn to provisions contained in *State Environmental Planning Policy (Affordable Rental Housing) 2009, State Environmental Planning Policy (Housing) 2021* and *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*, the latter providing for exempt and complying development for a number of residential development types, including demolition with some exceptions.

1.2 Aims and objectives of this Part

The aim of this Part of Blacktown DCP 2015 is to provide clear and detailed residential controls that ensure that Council's objectives for residential development are achieved.

- **Objectives:**

  (a) To provide detailed design guidelines for both residential and non-residential development within the residential zones

  (b) To facilitate a high standard of residential development that has regard to adjoining and nearby development

  (c) To provide existing and future residents with residential development that is aesthetically pleasing and functional.

  (d) To facilitate the implementation of the residential aims and objectives as set out in Blacktown LEP 2015

  (e) To provide guidance on preparing and lodging Development Applications (DA) for residential development proposals, to help facilitate the timely consideration and determination by Council of DAs.

1.3 The residential zones

Blacktown LEP 2015 contains the following residential zones:

(a) R1 General Residential
(b) R2 Low Density Residential
(c) R3 Medium Density Residential
(d) R4 High Density Residential.

The Blacktown LEP 2015 Land Zoning Maps show the location of the residential zones.

The Land Use Tables at Part 2 of the Blacktown LEP 2015 Written Instrument outline the objectives of each zone and identify the types of land uses that are permitted (with or without Council's consent) and prohibited in each zone.

The Blacktown LEP Written Instrument also contains clauses that affect how residential land can be developed and used.

The *Blacktown Housing Strategy 2036* (adopted by Council in February 2012) provides the rationale for the residential component of Blacktown's LEP and DCP.

The Housing Strategy promotes an efficient use of existing urban areas and a wide variety of residential densities and housing types to meet the housing needs of Blacktown's growing and changing population.

The Housing Strategy promotes a 'centres-based' approach that focuses the bulk of Blacktown's future housing growth in the Urban Renewal Precincts (URPs) of Blacktown City Centre, Mount Druitt Major Centre and the Town Centres of Seven Hills and Rooty Hill. These URPs were selected to accommodate most of Blacktown's future infill housing growth as they have superior access to employment opportunities, transport and a wide range of services and facilities. Council has prepared detailed masterplans for each of the URPs, which provide for a range of urban uses, including medium and high-density housing.

Outside the URPs, Council seeks to protect the character and amenity of Blacktown's traditional low density residential neighbourhoods and provide certainty to landowners by generally prohibiting medium and high-density housing types in these areas.

1.4 Types of residential accommodation

Blacktown LEP 2015 provides for a wide range of housing types to be developed in suitable locations across Blacktown City, including:

(a) Attached dwellings
(b) Boarding houses
(c) Dual occupancies
(d) Dwelling houses
(e) Group homes
(f) Hostels
(g) Multi dwelling housing
(h) Secondary dwellings
(i) Seniors housing
(j) Semi-detached dwellings
(k) Shop top housing
(l) Residential flat buildings.

The development controls and design guidelines outlined in Sections 1.6 to 1.8 below are relevant to most of the above housing types.

1.5 Building elements and design principles

Well-designed homes are enjoyable and comfortable to live in, sustainable to run, they provide amenity for residents and neighbours, and they create beautiful streetscapes that communities can be proud of. Good design ultimately enhances the social, environmental and economic value of neighbourhoods.

In designing residential developments, attention should be given to the interface between building elements and the public realm in order to achieve a balance between providing private personal comfort and a quality public environment. In particular, the following building elements and design principles are to be considered:

- **Setbacks and building coverage**

  Consider the visual and solar impact of the front, side and rear of the lot on the street character and neighbouring sites.

- **Building form**

  Façade design, articulation, windows and doors, mass and proportions, roof form and slope all contribute to the creation of innovative buildings that integrate well with the surrounding environment and express quality visual character.

- **Active street frontage**

  Good visual contact between residents and the street helps to create safe and friendly neighbourhoods. Position windows, doors and balconies carefully to achieve this.

- **Energy efficiency**

  Orientation and the position of windows, sunny courtyards and solar accessible clothes drying areas are basic measures for creating an energy efficient home.

- **Materials, colour and texture**

  Visual quality and overall success relies on the care and attention given to building design at a detailed level.

- **Landscape planting**

  Landscaping is to have a positive impact with the use of permeable surfaces, retained mature trees, a relationship to the streetscape and is to provide ecological diversity.

  A minimum of 50% of the proposed trees, 50% of the proposed shrubs and 50% of the proposed grasses and groundcovers (not including turfed areas) are to be native plants that are listed in Councils Vegetation Management Plan Guideline booklet:

  https://www.blacktown.nsw.gov.au/Plan-build/Stage-2-plans-and-guidelines/Native-vegetation-management

  Cultivars of hybrids of listed plant species are not be counted towards this requirement. Plants should be chosen that will improve biodiversity, minimise fertiliser and water usage, lower urban heat through shading and evapotranspiration and maximise survival rates during drought periods.

Plants indigenous to the Cumberland Plain and the Blacktown Local Government Area will likely have a better survival rate as they are adapted to our local soils and climate. Suggested plant communities and species for planting are found in Council's Vegetation Management Plan Guideline booklet (see above link).

In some situations, non-indigenous species can be planted to meet aesthetic objectives or landscaping outcomes.

1.6 The Building Sustainability Index (BASIX)

The Building Sustainability Index (BASIX) is an online planning tool that is free and accessible to anyone. The program analyses the potential performance of residential buildings against a range of sustainability indices in order for the development to meet specific energy and water targets.

A **BASIX Certificate** identifies the sustainability features required to be incorporated in the building design. These features may include recycled water, roofwater tanks, 3-star/AAA rated shower heads and taps, native landscaping, heat pump or solar water heaters, roof eaves/awnings, wall/ceiling insulation and the like.

A BASIX Certificate is generally required to be submitted for residential developments including certain alterations and additions. Applicants should use the BASIX website or consult the NSW Department of Planning Housing and Infrastructure to determine whether a BASIX Certificate is required for proposed developments. The BASIX Certificate must be attached to the DA before it can be processed.

Applicants can only generate the BASIX Certificate on the interactive website:
https://www.planningportal.nsw.gov.au/development-and-assessment/basix

1.7 Retaining walls and ground reshaping

- **Objectives**

  Requirements relating to retaining walls and ground reshaping aim to minimise excessive alteration of natural ground levels in a manner that will affect or compromise the structural stability, integrity and amenity of adjacent development, structure or service conduit on the subject or adjoining land. In addition, soil erosion should be minimised, opportunities for reasonable recreational use of land is to be maximised and the cost burden for retaining works on owners is to be reduced.

- **Controls**

  To enable Council to properly ascertain the extent of proposed cut and fill, DA plans shall include the proposed location of any retaining walls, which are to comply with the following controls:

Standard	Control
Maximum depth of any cut	900mm
Maximum height of any fill	600mm
Terracing (horizontal separation) between retaining walls	Minimum of 1.2m

Where any reshaped ground is not supported by a structurally adequate retaining wall, the ground shall be battered/sloped at a maximum 30% to the horizontal (1:3.3) and effectively stabilised with turf lawn or other landscaping.

All retaining walls are to comply with relevant Australian Standards, Engineering Design Codes or any manufacturer's specifications.

The amount of cut, fill and retaining walls must be shown on the submitted plans, covering the whole of the site and not just the building platform.

Care should be taken to ensure that any reshaped ground does not undermine or fill around any tree.

1.8 Demolition of buildings

1.8.1 General

The following information is provided as a guide for the demolition of residential buildings and associated minor structures (Class 10 buildings, such as garages, sheds, fences, carports and the like).

The demolition of any building or structure is required to comply with the provisions of AS2601, *The demolition of structures* and any WorkCover Authority of NSW (WorkCover) requirements.

1.8.2 Approvals required

Under Clause 2.7 of Blacktown LEP 2015, development consent is generally required for the demolition of a building or work.

If the demolition of a building or work is identified in *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* as exempt or complying development, and if each and every one of the relevant development standards contained within that Policy are met, the demolition works may be carried out without development consent following the issue of a Complying Development Certificate.

1.8.3 Development Application information

The following documents should be submitted to Council for consideration in the demolition of a building or structure:

(a) DA Form (one application can be used for the demolition and proposed new buildings)
(b) Work plan
(c) Site plan
(d) Waste management plan.

A ***work plan*** should include:

(a) The proposed methods of demolition to be used (including any machinery or equipment)
(b) Estimated time for the demolition to be completed
(c) Hours of operation
(d) Details of any required hoardings
(e) Details of any proposed sediment control measures
(f) Site access.

A ***waste management plan*** provides details of:

(a) The volume and type of waste to be generated by the demolition
(b) How the waste is to be stored / treated on-site
(c) Residual waste disposal method.

This plan is to be prepared in accordance with Part G (Site Waste Management and Minimisation) of Blacktown DCP 2015 (a standard plan format is available from Council).

A ***site plan*** indicates the distance of the building/structure to be demolished from the land boundaries, other buildings / structures on the land and adjacent buildings / structures on adjoining land.

2 Subdivision for detached housing

2.1 Definitions

The definitions and diagrams below explain Council's interpretation of allotment types and shapes.

Corner allotment is an allotment, not being a battle-axe shaped allotment, having frontage to 2 or more intersecting, differently named roads.

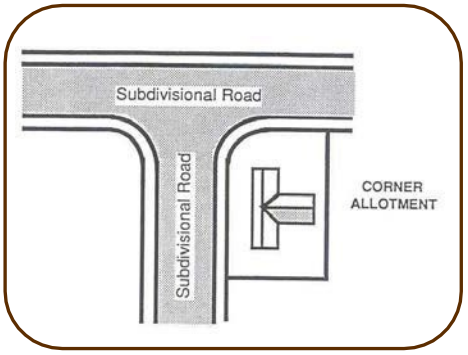


Figure 2.1 Example of a corner allotment

Irregular shaped allotment is an allotment which is not a regular shaped allotment.

Regular shaped allotment is an allotment which comprises either:

(a) An allotment which is square or rectangular in shape, or

(b) An allotment of any other shape where a square or rectangular shape equivalent in area to the minimum area for the allotment type could be contained within the boundaries of the allotment

and includes a battle-axe shaped allotment and a corner allotment where the only deviation from the above requirements is the access corridor or splay corner respectively.

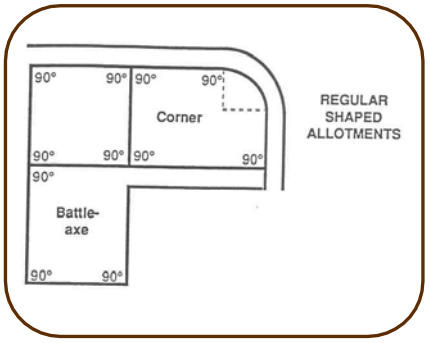


Figure 2.2 Example of regular shaped allotments

2.2 Subdivision design

Subdivision is generally the first stage of development in a residential area. The design of a subdivision can influence the "comfort" of the future residents of the area.

2.2.1 Road patterns

Detailed requirements for road design are contained in Blacktown DCP, Section 5 of Part A (Introduction and General Guidelines).

The Blacktown LEP 2015 Land Zoning Maps show the location and zoning of arterial roads (shown in yellow and zoned SP2 Infrastructure – Classified Road) and sub-arterial roads (shown in yellow and zoned SP2 Infrastructure – Local Road). All other roads are zoned in accordance with the dominant surrounding zone.

2.2.2 Lot configuration

To increase visual surveillance of the street and avoid a streetscape of garage facades, irregular shaped allotments with narrow street frontages should be avoided, particularly where several of these lots are proposed in an adjoining manner.

2.2.3 Solar access

In determining a Subdivision Application, Council may take into consideration access to solar radiation for dwellings which will be built on the allotments.

Council's objectives are to:

(a) Encourage the design of subdivisions which maximise solar access

(b) Ensure flexibility in the siting of dwellings to take advantage of a northerly orientation

(c) Avoid the reduction of solar access due to poor subdivision design

(d) Encourage building orientation that allows internal and outdoor living areas to be directly connected.

Solar access is maximised where the dwelling can be sited facing north (see Figures 2.3 and 2.4) and where overshadowing from other buildings is minimised.

The greatest usage of a residential allotment will usually be achieved where the house is sited parallel to one or more boundaries of the site.

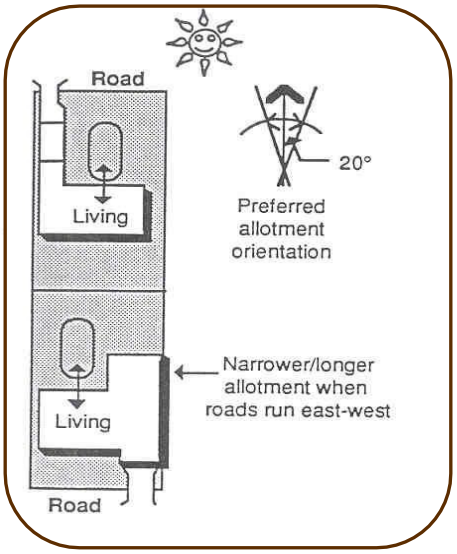


Figure 2.3 Road and allotment orientation for roads that run east-west

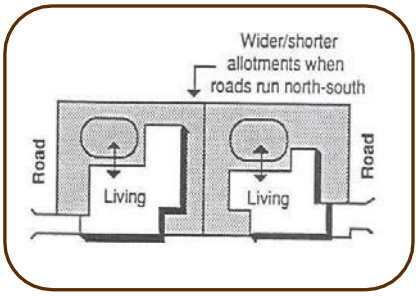


Figure 2.4 Road and allotment orientation for roads that run north-south

2.2.4 Road and allotment orientation

Consideration of road orientation is an important factor in influencing allotment orientation to achieve an energy-efficient subdivision.

On roads running north-south (thus resulting in allotments with an east-west orientation as illustrated in Figure 2.3), allotments may need to be widened to provide for solar access and prevent overshadowing of dwellings and private open space.

Allotments with a NW-SE or NE-SW orientation are unfavourable for solar access unless they are much larger than the minimum allotment size.

2.3 Minimum allotment sizes

Clause 4.1 of Blacktown LEP 2015 contains the minimum allotment size and minimum subdivision lot size requirements for residential land.

2.4 Allotment dimensions

Council aims to ensure that allotments are of dimensions which allow flexibility in the choice of housing design, whilst minimising development costs.

In assessing a DA for subdivision, Council is required to consider a number of matters including:

(a) The size and shape of each allotment to be created

(b) The length of road frontage of each allotment.

2.4.1 Minimum width

Allotments should have a minimum width of 12m at the building line, as shown in Figure 2.5.

In the case of irregular shaped allotments Council will require that a suitable building area is available for development.

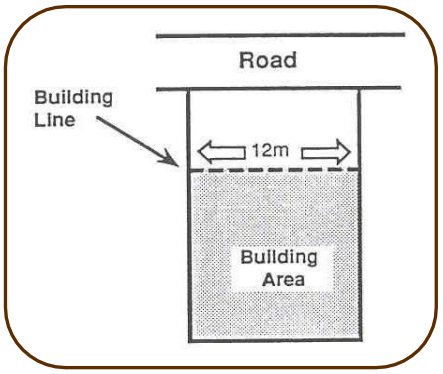


Figure 2.5 Minimum allotment width

In the case of battle-axe shaped allotments the minimum dimension in any direction should be 12m, as shown in Figure 2.6.

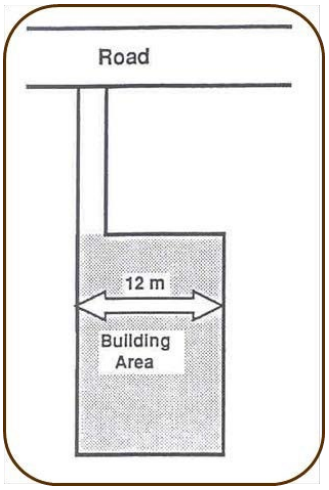


Figure 2.6 Minimum allotment width for battle-axe shaped allotments

Corner allotments should have a minimum width of 15m to take account of the building line to the secondary frontage, as shown in Figure 2.7.

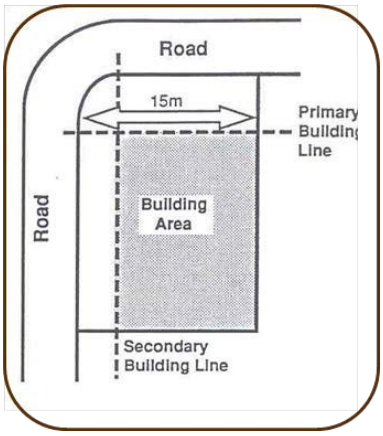


Figure 2.7 Minimum allotment width for corner allotments

2.4.2 Minimum depth

An allotment should not be less than 20m in depth to ensure that there is some flexibility in the choice of housing design and siting, as well as the availability of suitable space for other activities normally associated with a dwelling.

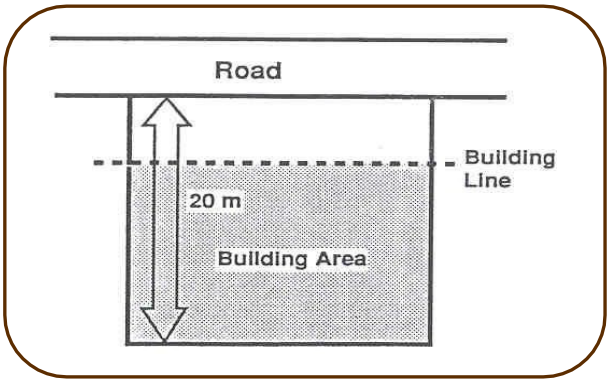


Figure 2.8 Minimum depth

2.4.3 Variation to minimum width and depth

Council may permit a variation to the minimum width and depth of an allotment where, for example, the siting of the dwelling is planned in conjunction with subdivision or where site conditions require special consideration.

Applicants requesting such a variation should first discuss the proposed change with Council and, when lodging a DA for subdivision, submit additional information in support of the variation.

2.5 Battle-axe shaped allotments

To help create a pleasant, safe residential environment it is desirable to:

(a) Maximise the amount of car parking which may be available on the street relative to the number of dwellings in the street

(b) Maximise the safety of pedestrians by ensuring that the number of driveways which cross the footpath are kept to a minimum.

In general no more than 2 battle-axe shaped allotments should adjoin each other.

On battle axe allotments provision must be made for vehicles to enter and exit the site in a forward direction.

The access corridor is that part of a battle-axe shaped allotment which provides private access between the main part of the allotment and the public road.

Council's requirements for access corridors are as follows:

Standard	Control
Maximum length	60m
Minimum width	3.5m
Minimum width of shared access corridor	5m

No more than 2 allotments should be served by a shared access corridor.

The access corridor of a battle-axe allotment is not included in the calculation of the minimum allotment area, as shown in Figure 2.9.

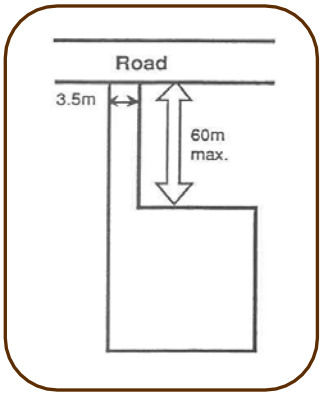


Figure 2.9 Access corridors for battle-axe shaped allotments

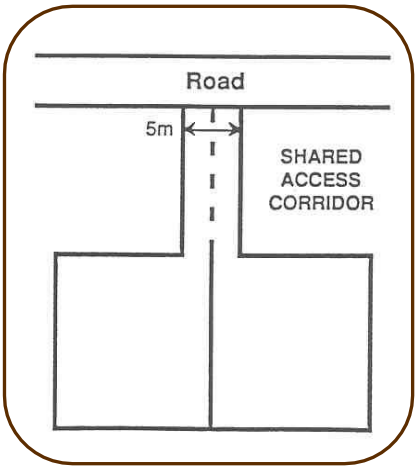


Figure 2.10 **Shared access corridor requirements for battle-axe shaped allotments**

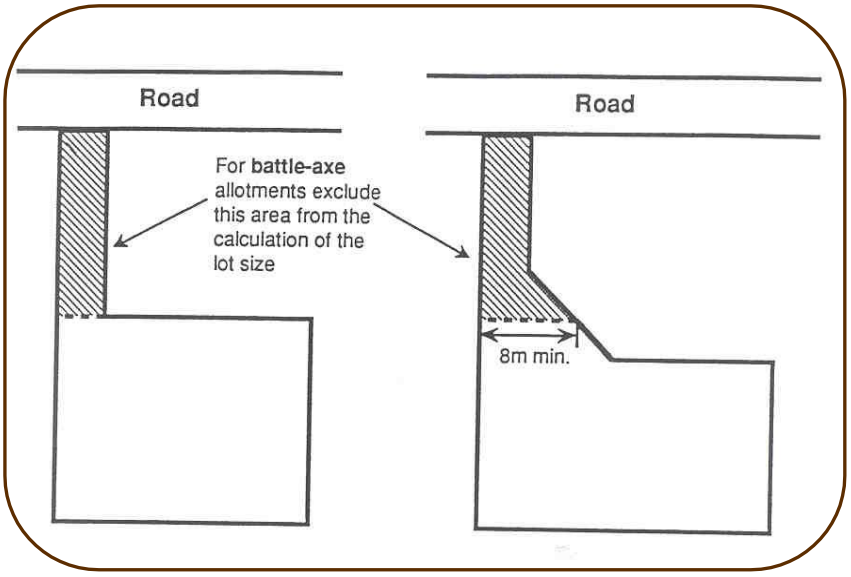


Figure 2.11 **Minimum allotment area calculation for battle-axe shaped allotments**

3 Dwelling houses

Under Blacktown LEP 2015, ***dwelling house*** means a building containing only one dwelling.



Under Blacktown LEP 2015, development consent for dwelling houses is generally required in all residential zones. However, development consent is not required where development for a dwelling house meets all of the criteria and standards within *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

3.1 Objectives

The objective of Council's controls for residential development is to guide the layout of dwelling houses in order to achieve orderly development in proportion to the allotment area. Dwelling house development should provide for:

(a) Sufficient private open space

(b) A landscaped front garden that complements and contributes to the amenity of the street

(c) The provision of adequate space between neighbouring dwelling houses.

Dwelling houses should be designed so as to be both functional and visually appealing.

3.2 Design guidelines

3.2.1 Wall setbacks

Building setbacks promote the amenity and functionality of the built environment. This can be achieved by demonstrating consideration of the following:

(a) Enhancing the visual impact of dwelling house development on the streetscape

(b) Provide opportunities for residents to landscape in a manner that reduces the visual and acoustic impacts of pedestrian and vehicular traffic, while enhancing the visual presentation of the dwelling frontage

(c) Providing space around a building to maximise solar access, natural ventilation, access for services and occupant movement

(d) Ensuring buildings comply with the performance requirements of Volume 2 (Housing Provisions) of the Building Code of Australia.

3.2.2 Allotment width

The width of an allotment where a single dwelling house is proposed is to be a minimum of 12m. Where existing allotments do not meet this requirement, they are classified as "narrow frontage allotments" (see definition in Section 3.8). Refer to Section 3.7 for Council's requirements for the development of narrow frontage allotments.

3.2.3 Building line

The minimum building line for a dwelling house or dwelling house addition to the primary road frontage shall be:

(a) 6m for all locations covered by this Part, except for Stanhope Gardens

(b) 4.5m for land located in Stanhope Gardens (see Figure 3.1), except where dwellings directly front Stanhope Parkway that have rear driveway access to which 6m shall apply.

The wall of any dwelling shall be setback a minimum 3m from any rear boundary of the allotment that directly abuts a roadway.

The aggregate width of a garage door/s or carport shall not exceed 50% of the total width of the front elevation (i.e. facing the primary road) of the dwelling.

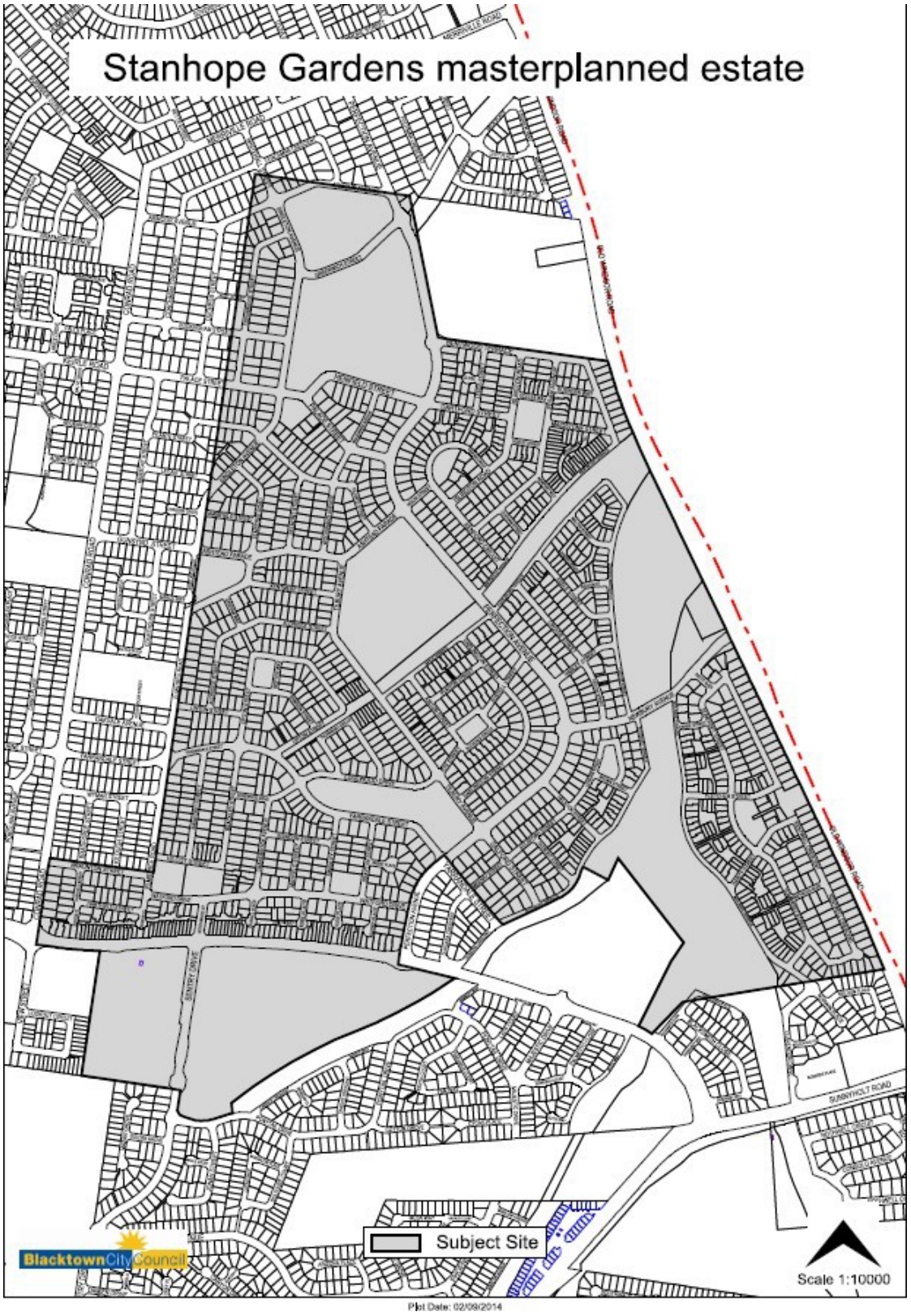


Figure 3.1 Stanhope Gardens masterplanned estate

3.2.4 Side and rear boundary wall setbacks (maximum 2 storeys)

(a) The ground storey walls of any dwelling house or addition shall be setback a minimum 900mm from any side or rear boundary of the allotment, except where the provisions of Section 3.2.3 apply

(b) Side walls containing windows to habitable rooms should be setback from the side boundary by at least 1.2m for land within Stanhope Gardens

(c) The upper storey walls of any dwelling house shall be setback a minimum 900mm from any side boundary and 3m from any rear boundary of the allotment, except where the provisions of Section 3.2.3 apply

(d) For land within Stanhope Gardens, 2 storey walls neighbouring zero lot boundaries must be setback 1.5m from the side boundary. In other cases, 2storey walls should be setback from the side boundary at least 1.2m

(e) The eaves/gutters of any single-storey dwelling house or dwelling house addition shall be setback a minimum 450mm from any side or rear boundary, other than a secondary road

(f) The eaves/gutters of any 2 storey dwelling house or dwelling house addition shall be setback a minimum 675mm from any side or rear boundary, other than a secondary road

3.2.5 Side and rear boundary wall setbacks (more than 2 storeys)

The ground storey walls of any dwelling house or dwelling house addition shall be setback a minimum 1.5m from any side or rear boundary of the allotment.

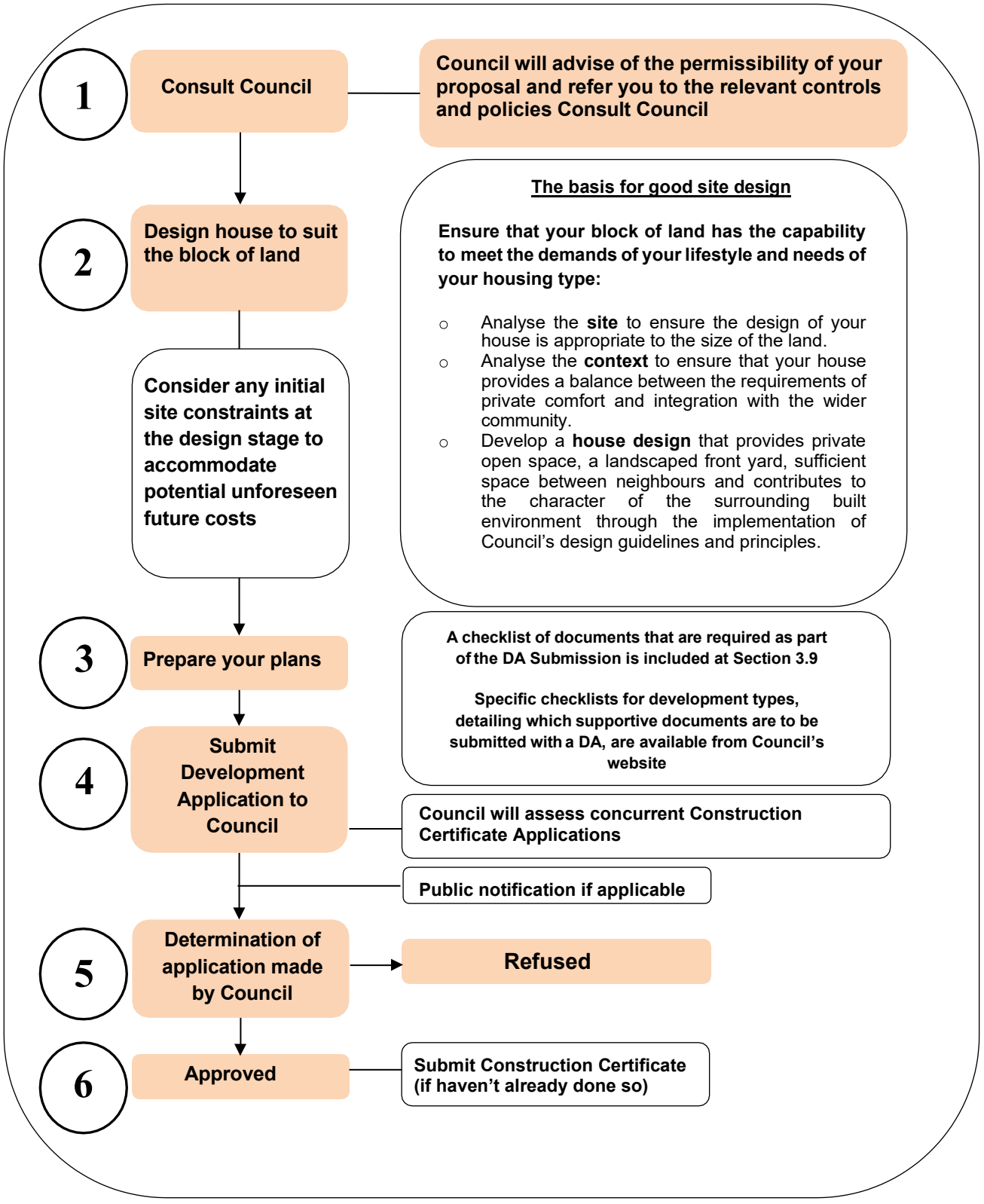
The upper storey walls of any dwelling house or dwelling house addition shall be setback a minimum 1.5m from any side boundary and 3m from any rear boundary of the allotment.

The eaves/gutters of any dwelling house shall be setback a minimum 675mm from any side boundary.

3.2.6 Dwelling house height

The height of any dwelling house is to be in accordance with Clause 4.3 (Height of buildings) of Blacktown LEP 2015. This clause should be read in conjunction with the LEP Height of Building Map.

3.3 Dwelling house design and approval / determination process



3.4 Development on corner lots

- **Objectives**

  Corner sites are prominent in residential neighbourhoods as they have 2 street frontages and are therefore highly visible. Proposals for dwelling houses on corner allotments should be designed in such a way as to address both streets, and emphasise such a significant location through built form and landscaping.

- **Controls**

  There are many ways to design a dwelling house, or make alterations and/or additions to a dwelling house on a corner allotment that also responds to both streets. Such buildings should be designed with multiple frontage concepts, paying particular attention to design principles including fencing, articulation, materials, façade treatments, landscape planting and setbacks, to contribute to the streetscape and make a positive contribution to the neighbourhood.

3.4.1 Setbacks

The minimum building line for a dwelling house or dwelling house addition to the primary road frontage shall be 6m, with a maximum 1m encroachment of any architectural feature. The building line to any secondary road is 3m with a maximum 1m encroachment of any architectural feature (such as a patio, balcony, porch and the like, but not a garage or carport). These controls are demonstrated in Figure 3.2.

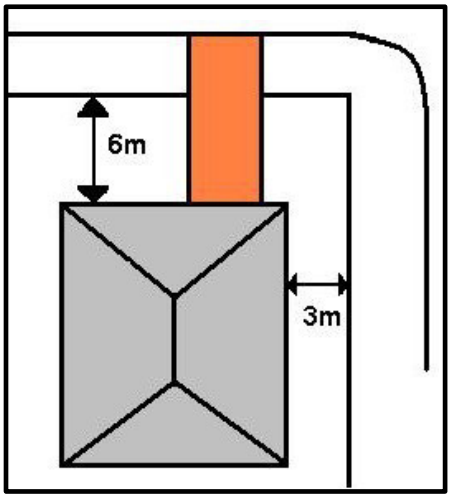


Figure 3.2 Setback controls for corner lots

The minimum setback from a property boundary to a secondary frontage on land located in Stanhope Gardens is 2m on collector streets (road reserve of 18m or wider) and 1m on all other streets.

3.4.2 Design guidelines

- **Fencing**

  Fencing used incorrectly can work to the detriment of the street and provide an intimidating street presence. To maintain an interesting street frontage and encourage visual surveillance, fencing should be of a similar quality and material to the dwelling.

- **Landscaping**

  Looking for good landscape planting opportunities should always be a priority, but even more so on corner allotments. Proposals should retain contact between the dwelling and the street, and complement the design of the dwelling with an attractive interface that contributes to the streetscape and character of the neighbourhood.

- **Design / articulation**

  The dwelling house should be designed to have frontage to both the primary and the secondary streets. Articulation of the facades is encouraged to create interesting and aesthetically pleasing street facades. Consider the location of windows and entries in order to maximise space, and maintain personal privacy and encourage surveillance.



3.5 Dwelling house design

3.5.1 Privacy

The objective is to maintain a visual level of privacy for proposed building occupants and for neighbouring residents. Private open space is an important factor in the design and layout of single dwelling house developments. Council will consider the character of adjoining development and the implications on occupants' levels of privacy and visual invasion on private outdoor space when assessing a Development Application.

The design and layout of dwelling house proposals are to demonstrate adequate consideration of, and provision for, a reasonable level of privacy for occupants of adjoining residential buildings and existing, proposed or potential private open spaces.

First floor living areas are of particular concern and should be designed with privacy and views in mind. The design of the dwelling should reflect private amenity by:

(a) Offsetting side windows with those of neighbouring dwellings

(b) Providing screening to limit views

(c) Carefully considering the location of balconies and openings to minimise overlooking and maintain personal privacy

(d) Implementing other design elements to ensure privacy where required, such as raising sill heights, using translucent glass and other forms of screening.

3.5.2 Drainage

Roofwater from a dwelling house or dwelling house addition must be drained to the street gutter or registered interallotment drainage system in accordance with AS 3500.3 where possible. Where this provision cannot be satisfied, roofwater must be drained to a rainwater tank with a minimum capacity of 5,000 litres, in accordance with AS 3500.3.

The tank overflow drain shall be connected to a rubble pit having minimum dimensions of 600mm wide x 600mm depth x 1200mm length per required downpipe. It must be located a minimum 3m from any property boundary and any existing or proposed building (including impervious pavement) on the land.

3.5.3 Parking spaces

The design of parking and the arrangement of car parking spaces should contribute to the creation of safer and attractive streets through the reasonable provision for motor vehicle accommodation on the developed land. In doing so, the demand for parking within the road reserve is to be reduced and the quality of the urban environment improved.

A minimum of 2 vehicle parking spaces shall be provided behind the building line on each residential allotment. Each parking space shall be located in a garage, carport or on another sealed part of the allotment, but not within the required front boundary setback or open space.

Each parking space shall measure a minimum of:

(a) 5.5m long x 3m wide (where a single space does not adjoin another space) or

(b) 5.5m long x 2.75m wide (where spaces adjoin side-by-side, i.e. 5.5m wide for a double garage) or

(c) 5.75m long x 3m wide (where spaces adjoin end to end).

At entry and exit points, access driveways should be graded to increase safety for pedestrians and make it easier for private users to enter the street. The driveway gradient to each parking space shall comply with the requirements of AS 2890.1.

The vehicular crossing of the footway shall be located a minimum 1m from any gully pit or other utility service infrastructure located within the road reserve, and shall be located a minimum 6m from any tangent of the road kerb return on a corner allotment.

3.5.4 Private open space

Private open space is to be provided on a reasonable area of land for the recreational use of building occupants.

An area of the allotment having a minimum area of 80sq.m is to be provided behind the primary building line as private open space.

The minimum horizontal dimensions of the private open space shall be 6m x 4m for one area, with any other composite area having a minimum dimension of 2.5m measured perpendicular to an external wall of the building.

3.5.5 Solar access / overshadowing

A minimum 50% of the required private open space of the subject and adjoining residential development sites should receive a minimum 4 hours of sunlight between 9:00am and 3:00pm on 21 June. A shadow diagram may be required to verify compliance.

Applications for a dwelling of more than 2 storeys shall be verified by a complying shadow diagram that accurately reflects the topography of the land and incorporates existing

structures and likely future structures on the subject and adjoining land. The building design and site layout of dwelling house development is to ensure adequate sunlight access to internal living spaces of the proposed and adjoining developments.

3.6 Garages, carports, awnings and sheds

- **Objective**

  Garages and carports should not be designed in isolation, but should be designed as part of a holistic approach to the property. It is important that they do not dominate the frontage and do not detrimentally compromise the aesthetic relationship to the front garden and the street.

3.6.1 Site requirements

Any garage, carport, awning or shed on a site must not exceed 60sq.m where minimum setbacks are utilised. Larger structures may be acceptable if sited on large allotments and where, greater setbacks are provided.

3.6.2 Building line

The minimum building line for an attached or detached garage, carport, awning or shed to the primary road frontage shall be:

(a) 6m or lesser where compatible with adjoining residential development, except for Stanhope Gardens as provided in (b) below



Figure 3.3 Dominant garage placement

(b) 4.5m building line with a maximum projection of 1m applies to land located in Stanhope Gardens for awnings.

Garages and carports are to be setback or in line with the main building frontage / façade in order to be a non-dominant visual component of the streetscape - see Figures 3.3 and 3.4.

Council encourages the same setback for detached garages, carports and sheds as the dwelling to which it is ancillary, from any secondary road. This will assist in these ancillary structures acting as a non-dominant component of the streetscape in compliance with Council's objectives.

3.6.3 Building line – corner allotments

The minimum building line for a detached garage, carport, awning or shed to any secondary road shall be 3m.



Figure 3.4 Non-dominant garage placement

3.6.4 Side or rear boundary wall setbacks

The wall of any detached garage, carport, awning or shed shall be setback a minimum 500mm from any side or rear boundary of an allotment.

3.6.5 Height

The wall height of any garage or carport shall be a maximum 2.7m above the lowest immediately adjacent ground level.

The overall height of any garage or carport shall be a maximum 4m above the lowest immediately adjacent ground level.

3.6.6 Design

Garages, carports and awnings are to be designed and constructed in a manner that is compatible with the design of the dwelling house. Garages are not to obstruct the visual contact of the dwelling with the street. Furthermore, building design is to achieve relief in roof and built form, and facades are to be articulated through materials and encroachments at a detailed level to achieve a high standard of visual character and contribution to the streetscape. The garage design, including the choice of style for the door, should be simple, so that the entire frontage of the development is not dominated by the garage, but is compatible with the dwelling design and addresses the street.

The aggregate width of garage door/s or carport should not exceed 50% of the total width of the front elevation (i.e. facing the primary road) of the dwelling. This is essential to maintain the visual perception that the primary use of a residential lot is for that of a residence. Council will consider variation for 2 storey dwellings where the façade is suitably articulated and a high standard of design innovation has been expressed to the satisfaction of Council.

3.6.7 Drainage

Roofwater from a dwelling house or dwelling house addition must be drained to the street gutter or registered interallotment drainage system in accordance with AS 3500.3 where possible. Where this provision cannot be satisfied, roofwater must be drained to a rainwater tank with a minimum capacity of 5,000 litres, in accordance with AS 3500.3.

The tank overflow drain shall be connected to a rubble pit having minimum dimensions of 600mm wide x 600mm depth x 1200mm length per required downpipe. It must be located a minimum 3m from any property boundary and any existing or proposed building (including impervious pavement) on the land.

3.6.8 Battle-axe allotments

Carports and similar structures are not permitted to be located within the battle-axe accessway.

3.7 Narrow frontage allotments

3.7.1 Introduction

The City of Blacktown has a number of areas where lots exist that are less than 12m in width at the building line, and are generally consistent in width throughout the depth of the lot. These lots are in existence as a result of past premature subdivision created by a former Government Plan over 100 years ago. Section 3.5 of this Part requires that conventional Torrens title lots have a minimum frontage of 12m, and it is to lots that fall short of achieving this standard, and that were legally subdivided under a previous plan, to which this section applies. These controls accompany and strengthen the controls for residential dwelling house development.

Narrow frontage allotment means an allotment being less than 12m in width that was created by a former plan (such as a Government Plan), not being a Council subdivision plan.

This section of the DCP only applies to land zoned R2 Low Density Residential under Blacktown LEP 2015. It does not apply to any masterplanned estates that are zoned R3 under Blacktown LEP 2015 or land zoned RU4 Primary Production Small Lots under Blacktown LEP 2015 which is subject to future rezoning and precinct planning in the North West Growth Centre by the Department of Planning and Environment.

- **Objectives**

  (a) To achieve a high standard of building design and additional design innovation from proposals, to accommodate the restrictive nature of narrow frontage allotments

  (b) To ensure that orderly and visually appealing development is not compromised and high standards of design are maintained

  (c) To ensure that the development of narrow allotments is appropriate to the character and streetscape of existing residential neighbourhoods, and makes a positive contribution to the local built environment

  (d) To ensure that the design of narrow allotments facilitates a high standard of amenity to occupants and neighbouring properties

  (e) To ensure consistency with Council's dwelling house development controls and other relevant guidelines elsewhere in Blacktown DCP 2015.

3.7.2 Controls for development on 2 lots

A minimum of 2 lots are to be consolidated to form one registered Torrens title lot of at least 12m width, to accommodate either a single dwelling or an attached dual occupancy with no subdivision entitlement (See Figure 3.5).

Applicants seeking to retain 2 existing allotments that adjoin each other may design 2 attached dwellings that are each provided with an independent separating wall on each allotment. This ensures the development addresses the street as a unified structure, giving the appearance of an attached dual occupancy, but technically being detached by the separating walls, thus meeting the objectives of the narrow frontage allotment policy, the dwelling house development guidelines and Council's policy of not permitting dual occupancy subdivision (see Figure 3.5).

Dwelling house development that takes this form is to comply with the controls contained within the checklist at Table 3.1 below, in addition to the requirements of this section. Where there is any inconsistency between the checklist at Table 3.1 and the rest of this section, the controls within Table 3.1 shall prevail. Additionally, this type of development is to comply with the requirements of the Building Code of Australia and is to meet the relevant acoustic and fire rating standards.

As a result of the restrictive nature of narrow frontage allotments and the potential complexity of achieving Council's controls, a sealed off-street car parking space is permitted within the front setback as a concession to help proposals achieve high standards of visual design and a non-dominant garage, as well as the required number of car parking spaces. Sealed off-street car parking spaces are to be setback a minimum of 2.5m from the front boundary. This space is to be located in front of a garage and not directly in front of the habitable portion of the dwelling, to ensure there is no interference with the aesthetic relationship and visual connection between the development and the streetscape.

Standard	Control
Building line setback:	
• Dwelling	6m
• Maximum encroachment of architectural feature	1m
• Garage/carport	6m

Table 3.1 Checklist for narrow allotments (dual occupancy)

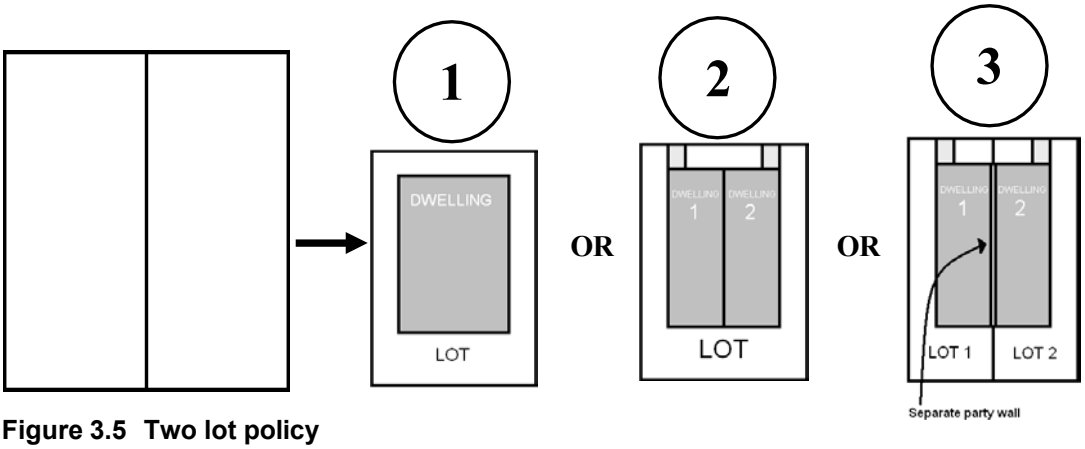


Figure 3.5 Two lot policy

(1) 2 lots are to be consolidated to create 1 allotment for the development of a single dwelling house with a minimum frontage of 12m.
(2) 2 lots are to be consolidated to create an attached dual occupancy with a minimum frontage of 12m.
(3) The development of 2 single dwellings on 2 separate existing allotments each joined by a separating wall and complying with the requirements of this code.

3.7.3 Controls for development on 3 lots

Where 3 narrow frontage allotments exist, consolidation is required to create either a single allotment or 2 allotments in order to comply with the controls of this code and achieve the objectives for the development of narrow frontage allotments (See Figure 3.6).

Where consolidation of 3 narrow frontage allotments creates 2 allotments of a minimum 10m width each, and the development of 2 single dwelling houses is proposed, the standard of design is to be of the highest quality. Council will be careful in its assessment of such

proposals to ensure the frontage is not dominated by the garage and that the use of materials, articulation and architectural design make a positive contribution to the local built environment and enhance the character and amenity of the streetscape and local neighbourhood.

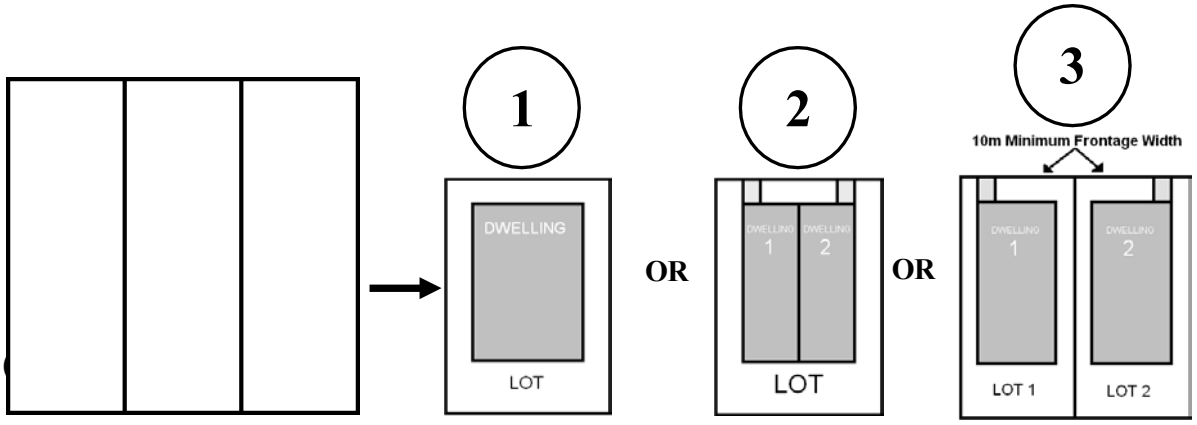


Figure 3.6 Three lot policy

(1) 3 lots are to be consolidated to create 1 allotment for the development of a single dwelling house with a minimum frontage of 12m.

(2) 3 lots are to be consolidated to create an attached dual occupancy with a minimum frontage of 12m.

(3) 3 lots are to be consolidated to create 2 allotments for the development of 2 single detached dwellings on 2 separate allotments, with a minimum frontage width of 10m each.

3.7.4 Isolated narrow frontage allotments

Council will not support development on an isolated narrow frontage allotment. Isolated allotments are to be consolidated with neighbouring allotments in order to comply with the minimum frontage width of 12m and the requirements of this code.

3.8 Studios and Lofts

3.8.1 Land to which these controls apply

The following controls for studios and lofts apply only to land within the Stanhope Gardens masterplanned estate (see Figure 3.1).

3.8.2 Objectives

To provide the opportunity for studios and lofts to be constructed in the Stanhope Gardens masterplanned estate to provide a range of housing choice.

3.8.3 Performance criteria

A studio is defined as a unit having a kitchen and bathroom requiring extra parking and open space. A loft containing a bathroom but not a kitchen, is not considered a studio.

One method of achieving casual surveillance is to have at least one of the garages fronting each private driveway include a studio or loft. The best location for a studio or loft is at the end of a long axis vista, preferably overlooking private open space areas, a private driveway or a common car court area. The location of studios or lofts should also consider overshadowing and privacy of neighbours. Windows should face onto private open space areas, driveways or common car court to allow for the casual surveillance of the area.

3.8.4 Controls

(1) Common requirements for both studios and lofts include:

(a) Only permitted on allotments greater than 350 square metres

(b) No more than one studio or loft for every seven dwellings

(c) Only permitted if approved and built in conjunction with a medium density development application

(d) Cannot be subdivided off from the main dwelling onto a separate title at any time

(e) Can be either attached or detached from the main residential dwelling

(f) Cannot be positioned where they will have direct frontage to public roads, such as on corner allotments

(g) Cannot have balconies that overhang into driveway or car court areas

(h) Cannot be attached to another studio or loft on an adjoining property.

(2) Additional specific requirements for studios include:

(a) A parking space is to be provided and can be either covered or uncovered. Council will not permit the sharing of a double garage by a studio and the main dwelling under any circumstances

(b) Proportional allocation of private open space, with a minimum courtyard area of 25 square metres. Council may allow a proportion of the minimum 25 square metres to be included as a balcony if deemed usable.

3.9 Definitions

Aggregate floor area means the horizontal area of all storeys in the existing or proposed building measured over the enclosing walls and any column or pier that supports the roof structure, including all habitable and non-habitable portions of the building.

AS means the current Australian Standard published by Standards Australia.

BASIX Certificate means that document required by State Environmental Planning Policy No. 75 - Building Sustainability Index (BASIX) and generated on the interactive website *www.basix.nsw.gov.au*

Building line means that part of land adjoining a public road within which a building may not be constructed.

Detached means separated by a minimum 900mm horizontal distance between the closest part of any external wall of any adjacent existing or proposed building on the allotment.

Dwelling house means a building containing only one dwelling.

Natural ground level means that ground level existing on the day the subdivision certificate was issued for the land, but not including any subsequent ground reshaping, whether or not that reshaping is Exempt Development under *State Environmental Planning Policy (Exempt and Complying Development) 2008*.

Narrow frontage allotment means an allotment being less than 12m in width that was created by a former plan (such as a Government Plan), not being a Council subdivision plan.

Private open space means a single area of the allotment that is available for the recreational use of building occupants, which may include the installation of a swimming pool, children's play equipment, barbeque and similar recreational facility.

Separating wall (also known as a party wall) means a wall that is independent to adjoining single dwelling houses.

Wall means the generally vertical external portion of an existing or proposed building, including any pier or column designed to support the roof structure.

3.10 Development Application checklist

In preparing a Development Application (DA) it is necessary to consider relevant Acts, policies and Regulations such as:

(a) Environmental Planning and Assessment Act 1979

(b) Environmental Planning and Assessment Regulation 2000

(c) Relevant State Environmental Planning Policies and Environmental Planning Instruments

(d) Local Government Act 1993

(e) Building Code of Australia.

Council has prepared a number of checklists detailing what supporting documents should accompany a DA. Applicants are encouraged to use the checklist relevant to their proposed development to assist in preparing their DA. The table below acts as a general guide for what supporting documents should accompany DAs. For a more detailed checklist tailored to specific proposed works, refer to Council's website:

https://www.blacktown.nsw.gov.au/Plan-build/Stage-4-apply/Lodging-a-development-application

The following documents or supporting information should accompany a Development Application	Check (√)
4 x Development Application plans including: • Site plan • Elevations • Floor plans • Section plans (if applicable) • Notification plans (6 x A4 copies)	
1 x BASIX Certificate	
1 x Waste Management Plan	
1 x Shadow diagrams (where required by Section 3.5.5)	
1 x Statement of Environmental Effects	
Building Demolition Site Investigation Report and Work Plan (where applicable - see Section 1.8 - Demolition of Buildings).	

3.11 Checklist of numerical standards for dwelling houses

Ref	Development control	Design requirement	Tick
3	**Dwelling houses**		
3.2.2	**Allotment width**	Minimum 12m (see Narrow frontage allotments where proposals cannot comply)	
3.2.3	**Building line:** • Dwelling house • Encroachment of architectural feature • Aggregate width of encroachment • Rear setback to a roadway • Aggregate width of garage/carport Land identified in Figure 3.1 • Dwelling house	 Minimum of 6m Maximum of 1m Maximum 30% of front elevation Minimum of 3m Maximum of 50% of total width of front elevation Minimum of 4.5m	
3.2.4	**Side and rear boundary wall setbacks (maximum 2 storeys):** • Ground storey side and rear setback • Upper storey side setback • Upper storey rear setback • Eaves/gutters side and rear setback (single storey) • Eaves/gutters side and rear setback (2 storey)	 Minimum of 900mm Minimum of 900mm Minimum of 3m Minimum of 450mm Minimum of 675mm	
3.2.5	**Side and rear boundary wall setbacks (more than 2 storeys):** • Ground storey side and rear setback • Upper storey side setback • Upper storey rear setback • Eaves/gutters side setback	 Minimum of 1.5m Minimum of 1.5m Minimum of 3m Minimum of 675mm	

Ref	Development control	Design requirement	Tick
3.2.6	**Dwelling house height:** • Overall height • Height to upper storey ceiling	 To be in accordance with Clause 4.3 of Blacktown LEP 2015 (Height of buildings) Maximum of 7m	
3.4	**Development on corner lots:** • Dwelling house setback • Encroachment of architectural feature • Setback to secondary road • Secondary frontage encroachment Land identified in Figure 3.1 • Dwelling house	 Minimum of 6m Maximum of 1m Minimum of 3m Maximum of 1m Minimum of 2m	
3.5.3	**Parking spaces:** Parking spaces required behind building line • Dimensions • Distance of vehicular crossing of footway to any gully pit or utility service infrastructure • Distance of vehicular crossing of footway from any tangent of the road kerb on a corner lot	 Minimum of 2 5.5m x 3m (single space) 5.5m x 2.75m (5.5m where spaces adjoin side by side) 5.75 x 3m (where spaces adjoin end to end) Minimum of 1m Minimum of 6m	
3.5.4	**Private open space:** • Minimum area • Minimum dimension • Other composite area	 80sq.m 6m x 4m Minimum horizontal dimension of 2.5m	
	Retaining walls: • Maximum depth of any cut • Maximum height of any fill • Minimum separation between terraced retaining walls	 900mm 600mm 1.2m	
3.5.5	**Solar access / overshadowing:** • Private open space minimum sunlight requirements	 50% to receive at least 4 hours between 9am and 3pm on 21 June	
3.6	**Garages, carports, awnings and sheds**		
3.6.1	**Maximum size:** • Garage, carport, awning or shed	 60sq.m	
3.6.2 3.6.3 3.6.4	**Building line:** • Garages/carport setback • Setback to secondary road • Side or rear setback	 Minimum of 6m Minimum of 3m Minimum of 500mm	

Ref	Development control	Design requirement	Tick
3.6.5	**Height:** • Overall height • Wall height • Aggregate width of garage door/s or carport	 Maximum of 4m Maximum of 2.7m Maximum 50% of front elevation	
3.7	**Narrow frontage allotments**		
3.7.2	**Building line setback:** • Dwelling • Encroachment of architectural feature • Garage/carport • Front boundary setback to sealed space	 Minimum of 6m Maximum of 1m Minimum of 6m Minimum of 2.5m	

4 Dual occupancy housing and secondary dwellings

4.1 Definitions

The definitions below reflect the provisions of Blacktown LEP 2015.

Dual occupancy means a dual occupancy (attached) or a dual occupancy (detached).

Dual occupancy (attached) means 2 dwellings on one lot of land that are attached to each other, but does not include a secondary dwelling.

Dual occupancy (detached) means 2 detached dwellings on one lot of land, but does not include a secondary dwelling.

Dwelling means a room or suite of rooms occupied or used or so constructed or adapted as to be capable of being occupied or used as a separate domicile.

Secondary dwelling means a self-contained dwelling that:

(a) Is established in conjunction with another dwelling (the principal dwelling), and
(b) Is on the same lot of land as the principal dwelling, and
(c) Is located within, or is attached to, or is separate from, the principal dwelling.

4.2 Subdivision of dual occupancies and secondary dwellings

Under Clause 4.1C of Blacktown LEP 2015 the subdivision of dual occupancies and secondary dwellings is generally prohibited, except in the case of detached dual occupancies and secondary dwellings where the following both apply:

(a) The frontage of each dwelling comprising the dual occupancy or secondary dwelling faces a differently named street

(b) The size of each lot resulting from the subdivision is not less than 300sq.m.

It is noted that nothing in Blacktown LEP 2015 prevents the subdivision of a detached dual occupancy and secondary dwelling development if the 2 resultant lots meet the minimum allotment size specified in Clause 4.1 of the Plan.

4.3 Development requirements

The following standards reflect Council's requirements for dual occupancy and secondary dwelling development. In certain circumstances variation from one or more of these standards may be appropriate. Any request for a variation will be determined by Council on its merit having particular regard for the overall quality of the development proposed.

4.3.1 Site requirements

Clause 4.1B of Blacktown LEP 2015 requires a minimum lot area of 500sq.m for dual occupancy and secondary dwelling (attached) and 600sq.m for dual occupancy and secondary dwelling (detached).

Where the development will result in the erection of 2 detached dwelling-houses, the area of the original allotment on which the dwelling-houses are to be erected shall not be less than 600sq.m. The area of each allotment created by the subdivision of a detached dual occupancy and secondary dwelling development on a corner allotment shall not be less than 300sq.m.

Conversion of existing garages, sheds or similar structures for dual occupancy or secondary dwellings is not permitted unless full compliance with all legislative provisions, including Blacktown Development Control Plan 2015 and the Building Code of Australia, can be demonstrated.

4.3.2 Corner lots

An allotment which has presently as its secondary frontage an access-denied road or laneway will not constitute a road for the purposes of a corner lot.

Where detached dwellings are proposed, the 2 dwellings must each face a differently named street.

Each dwelling must have a minimum primary front setback of 6m to the internal living areas and 5.5m to a covered car space. Alternatively, where the covered car space is setback 6m, a 5m setback to the internal living areas may be applied.

The dwelling located on the corner and which has 2 street frontages must comply with the primary front setback requirements as stated above and must have a minimum secondary street setback of 3m.

If an existing dwelling is to be retained as part of the development, then these setback provisions apply to the new dual occupancy and secondary dwelling only.

Slab on ground dwellings are to be setback 1m from any side or rear property boundary and 2m for dwellings sited on pier and joist foundations.

No living room windows or doors are permitted within 1m of a property boundary.

All courtyards are to be situated either at the rear or on the side of the dwelling and must be directly accessible to the internal living areas of the dwelling. No front courtyards will be included in the minimum area of the private open space for either dwelling.

Resited dwellings are not permitted on corner lots.

Where it is proposed to subdivide a corner lot dual occupancy and secondary dwelling development:

(a) The proposed dwellings must be detached

(b) The primary frontage on each proposed lot is to be a minimum of 10m at the building line.

Clause 4.3 of Blacktown LEP 2015 contains the height of building requirements for development.

In considering whether or not to grant approval to a DA for dual occupancy and secondary dwelling housing, Council will take into consideration the following matters:

(a) The privacy of the proposed development and adjoining properties and, in this regard, the location of living rooms and bedroom windows and the orientation of the rooms within the building/s. In this respect, living areas (not bedrooms) on the second storey, with a direct outlook to the principal area of private open space or habitable room windows (not bathrooms) of an existing adjacent dwelling within 9m must include one of the following:

(i) Be offset from the edge of one window to the edge of the other by a distance sufficient to limit views into the adjacent windows

(ii) Have sill heights of 1.5m above floor level

(iii) Have fixed obscure glazing in any part of the window below 1.5m above

floor level.

A plan detailing how this requirement is achieved should accompany the DA.

(b) That unreasonable overshadowing of the proposed development and adjoining properties does not occur

(c) The heritage value of any buildings, sites etc

(d) The adequacy of services to the site

(e) Whether the proposal has any effect on urban bushland.

4.3.3 What to submit with your application

Apart from Council's standard requirements for the submission of an application (which are detailed on the application submission form), the following information is required for Council to properly assess dual occupancy housing or secondary dwelling developments and must be submitted by the applicant:

(a) A services layout for any existing buildings, including water supply, sewerage, stormwater drainage, gas and electricity supply

(b) The proposed position of car parking spaces

(c) Accurate elevation plans which show existing and final ground levels on the site, with cut and fill details.

4.3.4 Drainage

Adequate provision must be made for the collection and disposal of surface and roofwater runoff. All stormwater shall be either reticulated to the street gutter or piped to a suitable location as approved by Council.

Where a site proposed for dual occupancy and secondary dwelling falls away from the fronting street, the DA must include documentation establishing a suitable drainage solution including interallotment drainage (and proposed easement) through downstream properties, and written permission from downstream property owners where applicable. Section 88K of the *Conveyancing Act 1919* provides suitable mechanisms to negotiate the creation of easements where an amicable arrangement cannot be made. Council will not support the placement of fill on land to channel stormwater drainage back to the street.

4.3.5 Building setbacks

The building setback from the street for dual occupancy housing and secondary dwellings should be 6m and 5.5m to a covered car space. The exception to this is land located in Stanhope Gardens where a 4.5m setback applies or 6m for dwellings directly fronting Stanhope Parkway that have rear driveway access.

Where the garage setback is 6m, a 5m setback to internal living areas is permissible.

The secondary building setback for a corner allotment shall be 3m for an attached dual occupancy and secondary dwelling. Where corner lots are located within Stanhope Gardens, the minimum setback from the property boundary to the secondary frontage is 2m on collector streets (road reserve of 18m or wider) and 1m on all other streets.

Whilst the building setback for dual occupancy and secondary dwelling housing shall be as required above, small projections of the living areas or the garage may be permitted.

Council will consider small projections of the garage provided the result does not adversely impact on the streetscape or existing adjoining dwellings. Small projections of the garage will only be considered if other architectural elements are designed to be features of the dwelling, such as full width verandahs, balconies, bay windows or similar.

Council will only consider proposals where features of the dwelling are designed to project forward of the main dwelling facade where it can be shown that there will be no adverse impact on existing adjoining dwellings.

The maximum projection of any feature of the dwelling from the building setback is 1m.

If small projections of the garage are proposed, living areas may not project forward of the main building line and vice versa.

4.3.6 Side boundary setbacks

The walls of dual occupancy and secondary dwelling buildings are generally required to stand a minimum of 900mm from the side and rear boundaries.

However, Council may consider permitting boundary setbacks of less than 900mm and will consider the effect of the development on the adjoining properties, the type of construction proposed and whether the wall will contain windows and other openings. The exception to this is for land located in Stanhope Gardens to which side walls containing windows to habitable rooms should be setback from the side boundary by at least 1.2m. Further, 2-storey walls directly adjacent to zero lot boundaries must be setback 1.5m from the side boundary. In other cases, 2 storey walls should be setback from the side boundary at least 1.2m.

In situations where the proposed wall will not contain windows and other openings and is of masonry construction, no objection will be raised to the wall being erected on the boundary which divides the existing development from the proposed allotment, subject to the amenity of the immediate area being preserved and compliance with the fire safety provisions of the Building Code of Australia is achieved.

All other cases will be treated on their merits. Walls less than 450mm from the boundary should be of maintenance-free construction and contain no windows or other openings. Under no circumstances will a building be permitted to overhang an allotment boundary.

The eaves/gutters of any single storey dual occupancy and secondary dwelling shall be setback a minimum 450mm from any side or rear boundary, other than a secondary road.

The eaves/gutters of any 2 storey dual occupancy and secondary dwelling or dual occupancy and secondary dwelling addition shall be setback a minimum 675mm from any side or rear boundary, other than a secondary road.

4.3.7 Parking

Refer to Part A for Council's off-street car parking rates.

Car parking spaces need not be covered but should be setback 2.5m from the front boundary. Stacked car parking will generally not be accepted.

All covered car parking spaces or garages shall have minimum dimensions of 3m width and 5.5m length.

All uncovered car parking spaces shall have minimum dimensions of 2.5m width and 5.2m length.

No addition or alteration to a dwelling shall involve the closure or alternative use of an existing garage unless suitable alterative vehicular parking is provided on the site.

4.3.8 External appearance

All dual occupancies and secondary dwellings should be designed and constructed so as to be compatible with and not detract from existing residential development on and surrounding the site.

Any proposed dual occupancy or secondary dwelling must display relief in the roof form and articulation of the walls. Developers will be required to vary the design of buildings and treatment of the external walls.

All dual occupancy and secondary dwellings that directly adjoin a public street must be orientated towards that street, by way of front door, verandah, awning or other similar structure, in order to provide an aesthetically pleasing front facade. Blank walls facing the street will not be accepted. If a dwelling is proposed on a corner allotment, relief in the building facade must also be provided on the non-entry side.

Details of the building materials and facade design of both the existing (where applicable) and proposed buildings are to be included in any application.

Where a dual occupancy or secondary dwelling is created by an addition above an existing dwelling, or by lateral extension to an existing dwelling, the extension should be designed so as to visually blend with and complement the existing building.

Where a dual occupancy or secondary dwelling is constructed as a first storey addition to an existing building and with an external access, this access is not to be provided at the street frontage.

4.3.9 Vehicular crossing of the footway

If not already existing, Council will require the construction of a vehicular crossing from the street across the footway to provide access to each dwelling.

4.3.10 Vehicular access

Access to each dwelling shall generally be by way of individual driveways, though Council may approve a shared driveway, of minimum width 5m, with reciprocal rights-of-way depending upon the nature of the development proposed. Where individual access is to be provided to each dwelling, a width of 3.5m will be required.

4.3.11 Fencing

In considering the development of dual occupancy or secondary dwelling proposals, Council will have regard for whether adequate privacy is provided for each dwelling and any adjacent development.

Council may require the provision of 1.8m high lapped and capped timber fencing or other suitable alternative at full cost to the developer along all external boundaries and all common property boundaries adjoining areas of private open space, service courtyards (e.g. clothes drying areas, garbage storage areas) and the like.

4.3.12 Building construction

All building construction shall comply with the requirements of *Building Code of Australia*.

4.3.13 Private open space

Council will require, for each dwelling, the provision of a private open space area for recreation and utility purposes. The provision of private open space is to ensure that existing and future residents have a usable area of open space that adds to their amenity and livability.

The private open space area shall be a minimum of 80sq.m in size for 1, 2 or 3bedroom dwellings and a minimum of 100sq.m in size for 4 or more bedroom dwellings.

Council defines a ***'bedroom'*** to be a room designed or intended for use as a bedroom or any room capable of being adapted to or used as a separate bedroom.

The following dimensions for the private open space area for each dwelling are required to be complied with:

(a) Minimum width of 2.5m

(b) One part of the private open space area is to be capable of containing an area of 4m x 6m which is directly accessible from the dwelling.

The private open space area shall have direct access to the internal living areas of the dwelling.

Council will not allow the private open space area to be included within the front boundary setback.

In locating the private open space area, consideration should be given to outlook, natural features of the site and neighbouring buildings and open space in order to maximise the use of this area.

The private open space area should be relatively flat, aiming to achieve a 1:10 maximum grade) and not contain impediments which unnecessarily divide the yard or cause physical barriers to the full use of the area as a whole.

The area should be designed in such a manner as to provide privacy and ensure adequate sunlight access.

4.3.14 Solar access

Council will not favour development proposals which cause unreasonable overshadowing on either the adjoining sites or the proposed development site itself.

Dual occupancy and secondary dwelling buildings should be designed to ensure that 50% of the on-site private open space areas of both the proposed development and the adjoining sites receive a minimum of 4 hours of sunlight between the hours of 9am and 3pm on 21 June.

The building design and site layout should ensure adequate sunlight access to the internal living spaces of the proposed and adjoining developments.

An application proposing a 2 storey dwelling must include shadow diagrams showing the impact of the proposal on the site and on adjoining sites between the hours of 9am and 3pm on 21 June. Such diagrams should be prepared by an appropriate professional, be based on a survey of the site and buildings on adjoining sites, and include details of finished ground levels.

4.3.15 Landscaping

The responsibility for the proper care and maintenance of the grounds surrounding the dwellings rests with the owner or owners of the property. Council may require the provision or maintenance of landscaping to a reasonable standard. A landscaping concept plan must be submitted with any DA.

5 Attached dwellings and multi dwelling housing

Attached dwelling means a building containing 3 or more dwellings, where:

(a) Each dwelling is attached to another dwelling by a common wall, and

(b) Each of the dwellings is on its own lot of land, and

(c) None of the dwellings is located above any part of another dwelling.

Multi dwelling housing means 3 or more dwellings (whether attached or detached) on one lot of land, each with access at ground level, but does not include a residential flat building.

5.1 Site requirements

The minimum width, when measured at the building setback line to the street frontage, of any site on which an attached dwelling or multi dwelling housing development is proposed should be no less than 26m.

The maximum depth of any site must be no greater than 2.75 times the width of the site at the building line, when any depth is measured along a line drawn perpendicular to the building line.

5.2 Building setbacks

The building setback from the street is 6m.

The secondary building setback for a corner allotment is 3m, but only to the wall of the first building on the site located near the corner of this frontage. All other buildings on the secondary frontage shall comply with Council's normal building setbacks.

Garages and carports should not project forward of the main front wall of any dwelling that adjoins a public road.

The building setback from the road frontage shall be 10m where the site fronts any road zoned SP2 Infrastructure (Classified or Local Road) and where vehicular access from the site to the road is to be permitted. Where the site fronts any road zoned SP2 Infrastructure (Classified or Local Road) and where vehicular access from the site to the road is denied, the setbacks to the buildings outlined above shall apply.

5.3 Building design

In relation to multi dwelling housing, buildings shall generally contain a maximum of 3 individual dwellings. However, where the roof line and roof height of the building are significantly varied and the principal building facade is staggered, Council may permit a maximum of 4 individual dwellings. These standards will add variety and interest to developments and will result in designs which "break up" long lines of dwellings into better designed groups of 3 or 4 dwellings.

Dwellings that directly adjoin a public street must be orientated towards that street by way of a front door, verandah, awning or other similar structure, in order to provide an aesthetically pleasing front facade. Blank walls facing the street will not be accepted. If a dwelling is proposed on a corner allotment, relief in the building facade must also be provided on the non-entry side.

Development must display relief in the roof form and articulation of the walls.

Samples of all external materials and colours must be submitted to Council as part of the application for the development.

5.4 Solar access

Council will not favour development proposals which cause unreasonable overshadowing on either the adjoining sites or the proposed development site itself.

Residential buildings should be designed to ensure that 50% of the common open space and private courtyard areas of both the proposed development and the adjoining sites receive a minimum of 4 hours of sunlight between the hours of 9am and 3pm on 21 June.

The building design and site layout should ensure adequate sunlight access to the internal living spaces of the proposed and adjoining developments.

The application must include shadow diagrams showing the impact of the proposal on the site and on adjoining sites between the hours of 9am and 3pm on 21 June. Such diagrams should be prepared by an appropriate professional, be based on a survey of the site and buildings on adjoining sites and include details of finished ground levels.

5.5 Building height

The height of any attached dwelling or multi dwelling housing is to be in accordance with Clause 4.3 (Height of buildings) of Blacktown LEP 2015. This clause should be read in conjunction with the LEP Height of Buildings Map.

5.6 Private open space

Each dwelling shall be provided with at least 1 private open space area. They should be suitably landscaped and be directly accessible from the dwelling at ground level. They may only be permitted in the setback area where a development backs onto or has frontage to, but does not have access from, a road zoned SP2 Infrastructure (Classified or Local Road). In such circumstances the fence to the private open space is to be suitably staggered (or indented) and landscaped to provide relief to an uninterrupted fence along the road frontage.

An open-air clothes drying area shall be provided as part of each dwelling's private open space area.

Private courts are to be clearly defined by building walls, screen walls or fencing and must have direct access to the internal living areas of the dwelling.

5.1.1 Multi dwelling housing

For multi dwelling housing, the total area required in any development to be devoted to private open space shall be at the rate of:

(a) 50sq.m per 1 bedroom dwelling

(b) 60sq.m per 2 bedroom dwelling

(c) 70sq.m per 3 or more bedroom dwelling.

Within the main private open space area, a minimum square of 7m x 7m must be provided. The remaining area must have a minimum dimension in any direction of 2.5m.

5.1.2 Attached dwellings

The private open space area for each attached dwelling shall be a minimum of 80sqm in size for a 2 or 3 bedroom dwelling and a minimum of 100sq.m in size for a 4 or more bedroom dwelling.

The following dimensions for the private open space areas for each dwelling are required to be complied with:

(a) Minimum width of 2.5m

(b) One part of the private open space area is to be capable of containing a rectangle of 4m x 6m which is directly accessible from the dwelling.

The private open space area shall have direct access to the internal living area of the dwelling.

5.7 Common open space (only applies to multi dwelling housing)

Landscaped common open space for the use of all residents of a development shall be provided at the rate of 15sq.m per dwelling and shall be in large aggregated areas which are capable of active use by residents. At least 100sq.m of such open space is required in any one multi dwelling housing development and must not be disproportionately elongated in shape.

Small pockets of open space designed to enhance the appearance of the development will not be counted in the common open space allocation, neither will parking areas, vehicle accessways nor landscaped areas located in the front setback.

5.8 Landscaping

All parts of the site not built-upon or paved shall be landscaped with grass, trees, shrubs and other vegetation. At least 4 trees per dwelling shall be provided on site. This may include existing trees which are retained as part of the development.

All landscaping work should enhance the existing natural features of the site and of adjoining unfenced areas. Care should be paid to the preservation and maintenance of existing natural landscape elements.

The development site should be densely landscaped to the depth of the setback along the front boundary. Corner sites shall also be required to incorporate landscaping along the frontage to the minor road to the depth of the setback.

Such landscaped areas may contain vehicular and pedestrian accessways only. Parking areas and private courts are not permitted in these landscaped areas except as specified below. Any landscaped setback area will not count as part of the common open space required for the development.

Private courts may only be permitted in the setback area where a development backs onto or has frontage to, but does not have access from, a road zoned SP2 Infrastructure (Classified or Local Road).

Unless otherwise advised by Council, the landscape design and planting should include the footpath nature strip. The developer is to liaise with Council to provide co-ordination between the site and the streetscape.

Each DA is to be accompanied by a plan showing the broad intention of the proposed landscaping on the site. This plan should indicate areas where earth shaping is proposed, areas which are to be embellished for purely visual effect, areas intended for recreation

purposes and any area required for the on-site detention of stormwater.

Landscaping must not obstruct driver sightlines.

Landscaping and tree planting play an important role in maintaining biodiversity, creating canopy coverage and providing ecological habitat. Indigenous species are to make up a large percentage of the planting mix. Suggested plant communities and species for planting are found in Councils Vegetation Management Plan Guideline booklet:

https://www.blacktown.nsw.gov.au/Plan-build/Stage-2-plans-and-guidelines/Native-vegetation-management

The development site should be densely landscaped to the depth of the setback along the front boundary. Corner sites are also required to incorporate landscaping along the frontage to the minor road to the depth of the setback. Such landscaped areas may contain vehicular and pedestrian accessways only. Parking areas are not permitted in these landscaped areas. Unless otherwise advised by Council, landscape design and planting of the site should include the footpath nature strip. The developer is to liaise with Council to provide coordination between the site and the streetscape.

Each DA is to be accompanied by a landscape plan showing the broad intention of the proposed landscaping on the site, including details of any significant trees requiring removal. Where there are existing trees on a development site, applicants should have regard to *State Environmental Planning Policy (Biodiversity and Conservation) 2021*.

The landscape plan should also indicate:

- areas where earth shaping is proposed
- areas which are to be embellished for purely visual effect
- areas intended for recreation purposes
- areas required for the on-site detention of stormwater
- proposed paving treatment for main entry points and pathways.

5.9 Setbacks of dwellings

Each dwelling shall be setback from the site boundaries (other than the street frontage boundary), from other dwellings on the site and from common accessways in accordance with the following principles:

(a) The minimum distance from any wall of a building to a site boundary shall be 2.3m. No eaves, window hoods or structures likely to obstruct the access of light and air may extend into this minimum setback distance by more than 600mm

(b) As far as practicable, long walls or groups of walls along a boundary setback area should be broken or staggered, subject to the maintenance of reasonable solar access to all dwellings

(c) Main building walls shall be setback from the pavement of a common accessway by at least 3m

(d) Where dwellings are attached to each other and constructed in groups, the minimum distance between any external wall of one group of dwellings and any external wall of another group of dwellings shall be 6m

(e) Where individual detached dwellings are constructed, the minimum distance between any external walls of any 2 dwellings shall be 2.5m.

5.10 Off-street car parking

Refer to Part A for Council's off-street car parking rates.

5.11 Accessways

An ***accessway*** is defined as an area or road for the access and maneuvering of vehicles within the boundaries of a development, but does not include car parking spaces.

The common accessway pavement shall be 6m wide from the street to the building setback and may reduce in width onto the site thereafter depending upon the scale of the development. No accessway pavement width shall be less than 4m for developments up to 5 dwellings and 5m for developments up to 15 dwellings.

Council will assess the suitability of vehicular accessways for cars and garbage trucks by reference to the State Government's standard vehicle turning templates for a car and a large rigid truck.

5.12 Public road access and construction

Council requires public road access to a standard appropriate to the new development and half width road construction with associated transition works adjacent to the frontage of the development. Such work shall include conventional kerb and gutter or roll-over kerbing, road pavement construction and drainage in accordance with detailed plans submitted to Council.

Concrete path paving in accordance with Council's standards shall be provided for the full frontage of the development to any road.

Vehicular crossings (of public road reservations) are to be located so as to avoid disturbing trees or any service installation, including road and drainage structures, sewer vents, service poles, light standards, Telstra frames and junctions and transformer units. Alternatively, an applicant can decide with the relevant service authority for the relocation of plant and equipment not owned by Council at no expense to Council.

Attached dwellings or multi dwellings housing development is not appropriate at the end of a cul-de-sac where lots do not front the street.

5.13 Fencing and screen walls

Clothes drying areas should be located away from the street or public places. Where this cannot be avoided, they shall be totally screened from public view.

Clothes drying areas shall be screened by walls 1.8m high. No such wall is to contain any windows of an adjoining dwelling unit.

Where a screen wall or fence faces a road, pedestrian walkway, reserve or public place, that wall shall be constructed of the same brick as used in the external walls of the dwelling units. The screen wall may incorporate other building material provided, in the opinion of Council, such materials enhance the physical appearance of the development. Should the wall be considered excessively long, Council may require it to be staggered and landscaped.

Site boundaries not fronting a street, pedestrian walkway, reserve or public place shall be fenced, at full cost to the developer.

5.14 Privacy

Where walls of neighbouring buildings are closer than 12m, care should be taken to establish a reasonable measure of visual privacy. The location of major windows of living rooms is of importance in this respect.

As far as practicable the windows of habitable rooms shall be screened or adequately separated from walkways, footpaths, communal areas, driveways, windows of other dwellings and balconies above. Courtyard walls, walls of the building, carport screen walls and the like will be an acceptable method of screening of ground floor windows.

Windows of a habitable room which are not screened adequately shall not be within sight of the window of another dwelling within a distance of 12m, unless the sill of one of the windows is 1.5m above floor level. For the purposes of this standard, "within sight" shall mean within a 55-degree cone of vision centred about a line drawn perpendicular to the centre of the window of a habitable room. This is shown diagrammatically in Figure 5.1 below.

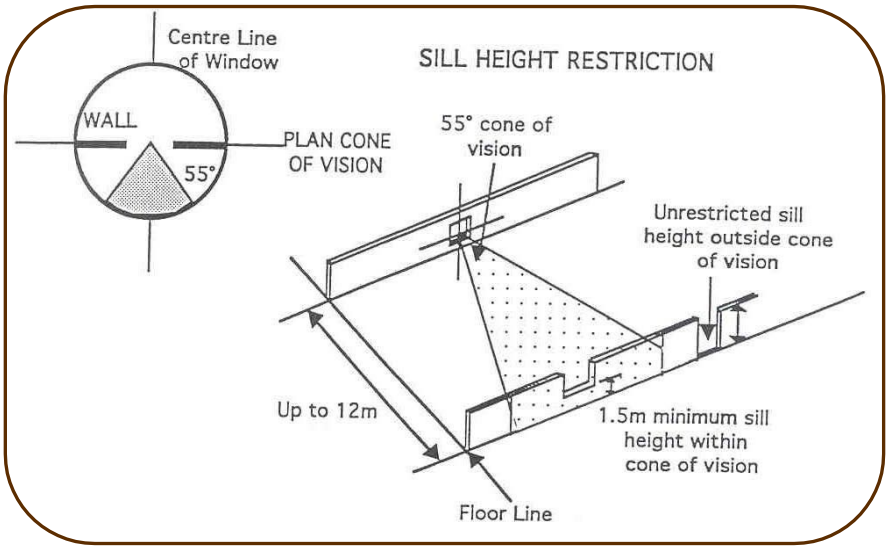


Figure 5.1 Sill height restrictions in multi dwelling housing development

Visual privacy can be achieved by:

(a) Not having major windows of the living room in the proposed side boundary wall or walls

(b) Avoiding windows that face directly onto the windows, balconies or courtyards of adjoining dwellings

(c) Using long narrow windows that provide light without significantly reducing privacy, like high vertical windows

and/or

(d) Providing privacy screening by way of walls, fences or planting (so long as these do not unduly reduce the availability of natural light).

Reasonable care should be taken to preserve the outdoor privacy of neighbouring dwellings. Ways of achieving this aim include:

(a) Locating any proposed dwellings, rooms, windows or balconies such that any neighbouring dwelling is left with at least one portion of open space that is not overlooked

and/or

(b) Providing screening by way of walls, fences or planting to prevent overlooking.

In assessing the level of intrusion on outdoor privacy Council will consider the character of adjoining development and the character of the area in general.

5.15 Views

The design of developments should minimise, wherever possible, the obstruction of views from adjoining buildings.

Council may require an applicant to provide a survey or plan, as part of the DA, showing the position of the proposal on its site, the location of adjoining buildings and the degree of view loss, if any, resulting from the proposal.

5.16 Services

Should an electricity substation (located within the site area or on the street frontage of the site) be necessary, the requirements of both Council and the relevant electricity provider shall be met.

All electrical reticulation within the site shall be underground.

Provision shall be made to illuminate all common accessways and driveways to the satisfaction of Council. Spacing between lights should not exceed 20m. All common accessways shall be lit at the vehicular footway crossing by an approved means from dusk to dawn.

A master television antenna is to be installed within the roof of each building and provision for connection thereto is to be made to each dwelling.

5.17 Laundry facilities

Each dwelling shall have individual internal laundry facilities in accordance with the requirements of the *Building Code of Australia*.

5.18 Drainage

Adequate provision must be made for the collection and disposal of surface and roofwater runoff. All stormwater shall be either reticulated to the street gutter or piped to a suitable location as approved by Council.

Where a site proposed for attached dwelling and multi dwelling housing falls away from the fronting street, the DA must include documentation establishing a suitable drainage solution including interallotment drainage (and proposed easement) through downstream properties, and written permission from downstream property owners where applicable. Section 88K of the *Conveyancing Act 1919* provides suitable mechanisms to negotiate the creation of easements where an amicable arrangement cannot be made. Council will not support the placement of fill on land to channel stormwater drainage back to the street.

6 Residential flat buildings

Residential flat building means a building containing 3 or more dwellings, but does not include an attached dwelling or multi dwelling housing.

6.1 State Environmental Planning Policy No. 65 and the Apartment Design Guide

State Environmental Planning Policy No. 65 – Design Quality of Residential Apartment Development (SEPP 65) applies to all development for residential flat buildings of 3 storeys and over. This includes new buildings and the redevelopment or conversion of existing buildings.

Under SEPP 65 all applications must:

(a) Have a Design Verification Statement demonstrating how the Design Quality Principles of SEPP 65 have been achieved

(b) Have a statement that the development has been designed by a registered architect

(c) Demonstrate how the development complies with the objectives and design criteria in the NSW Apartment Design Guide published by the NSW Department of Planning and Environment.

6.2 Local context

Understanding context is fundamental to developing housing which will be harmonious with the physical character of an area. The context of an area includes a wide range of factors ranging from broad characteristics to more specific considerations including:

(a) Zonings and other planning provisions for adjacent land

(b) Nature of surrounding uses and built form

(c) Topographic and landscape character

(d) Subdivision pattern of the area

(e) Significant features and constraints

(f) Access and public transport access

(g) Potential hazards from bushfire, flooding and landslip

The proper understanding of such factors is the most important first step for architects and developers in preparing DA plans.

6.2.1 Policy and desired outcomes

DAs for residential flat buildings should be based on a thorough understanding of site context, culminating in development which is reflective of context, safeguards local amenity and obeys sustainability principles.

6.2.2 Standards

Proposed residential flat development shall be designed in accordance with the assessed context. A Statement of Environmental Effects is required which includes a thorough assessment of context having regard to matters referred to in *State Environmental Planning Policy No. 65 – Design Quality of Residential Flat Development* (SEPP 65) and the Apartment Design Guide. The Statement of Environmental Effects shall demonstrate that the proposed development is appropriate and complementary to the assessed context in terms of the environmental factors identified by way of written analysis and diagrams.

6.3 Site analysis

A site analysis should be undertaken covering relevant factors from the list as assembled in the Statement of Environmental Effects. The analysis should include a drawing and a written statement, and be incorporated in the Statement of Environmental Effects.

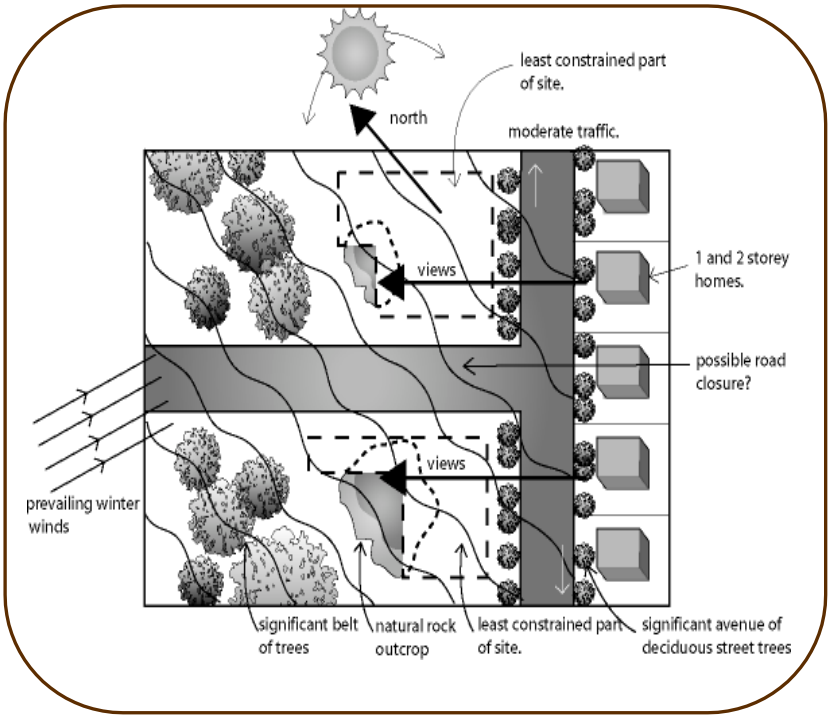


Figure 6.1 Site analysis

6.4 Site density controls

Sites should have sufficient dimensions to accommodate appropriately scaled residential flat buildings that comply with the other siting requirements of this Part of the DCP.

Sites should have a minimum frontage of 30m and a minimum depth of 30m.

6.5 Height

The height of any residential flat building is to be in accordance with Clause 4.3 (Height of buildings) of Blacktown LEP 2015. This clause should be read in conjunction with the LEP Height of Buildings Map.

6.6 Setbacks – front, rear and side

Setbacks from the front, rear and sides property boundaries play an important role in ensuring new development fits in with the local built context. Front setbacks in areas zoned for residential flat buildings create a continuous landscape and provide visual buffering between development and the public domain.

Side setbacks maintain visual permeability through development sites via landscaped corridors and prevent long unbroken walls of housing. Rear setbacks are also important to ensure that there is sufficient separation between sites and buildings for visual and acoustic privacy, and maintenance of solar access.

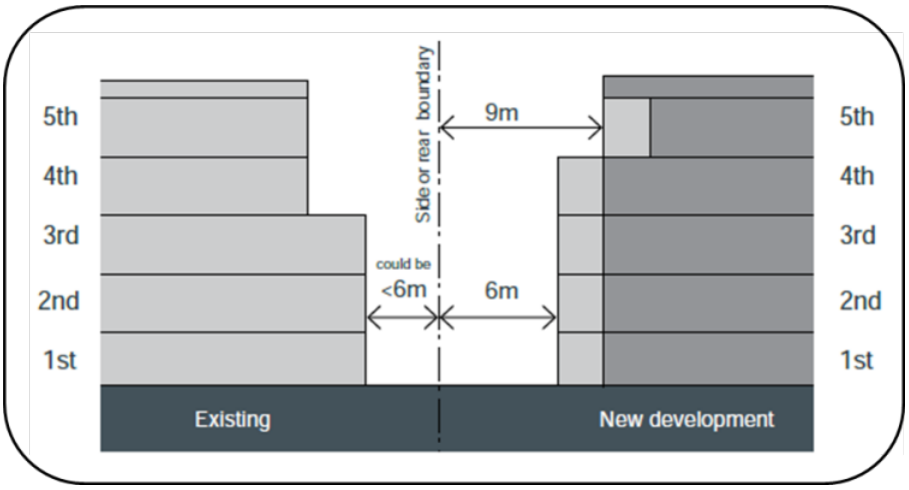


Figure 6.2 Side and rear setbacks from property boundaries
Source: Apartment Design Guide, NSW Planning and Environment

6.6.1 Objectives

(a) Ensure that setbacks provide space for building separation that is equitably shared between neighbouring sites

(b) Ensure that setbacks facilitate a consistent urban design character and protect view corridors and items of environmental heritage

(c) Provide opportunities for deep soil landscaping around the perimeter of the site to enhance residential amenity and local character

(d) Minimise impacts on adjacent properties, including privacy, views, solar access, and visual intrusion.

6.6.2 Standards

(a) The front building setback must be generally in line with the setback characteristic of neighbouring properties.

(b) The minimum front setback is:

(i) 9m for 3 or more storey buildings

(ii) 7.5m for 1 and 2 storey buildings.

(c) The minimum setback applies to sites adjoining or opposite low-density residential development even if the dominant street setback is less.

(d) Open style balconies (i.e. open on 3 sides) may project into the front setback by a maximum of 1m.

(e) Roof eaves and sunhoods may project into the front setback by a maximum of 600mm.

(f) Basements and basement parking areas are not permitted in the setback.

(g) For sites with more than 1 street frontage, including corner lots, appropriate setbacks will be set by Council during pre-lodgement discussions based on:

(i) The widest frontage and the main address of the development

(ii) The main pedestrian and vehicle access of the development

(iii) Streetscape, road hierarchy, and adjoining building lines

(iv) Any nearby items of environmental or cultural heritage.

(h) The minimum setback from the side and rear property boundaries must comply with the requirements of the NSW Apartment Design Guide:

Building height	Habitable rooms/balconies	Non-habitable rooms
4 storeys	6m	3m
5-8 storeys	9m	4.5m
9+ storeys	12m	6m

Table 6.1 Minimum side and rear setbacks

(i) Buildings adjacent to lower density residential zones must increase the separation distance from the boundary by 3m

(j) The first 3m of the side and rear setbacks must be a deep soil zone.

(k) Vehicle access ramps running parallel to the boundary must be setback 3m from side and rear boundaries.

(l) Reduced side and rear setbacks may be considered for shop top housing or buildings 9 storeys and above if it is demonstrated to Council's satisfaction that:

(i) Building separation can be achieved on-site and on adjoining properties

(ii) Suitable amenity can be achieved on-site and on adjoining properties, particularly with regard to solar access, ventilation and privacy

(iii) Appropriate separation and visual transition can be achieved between:

- Adjoining low density residential development or any sensitive uses
- Nearby items of heritage significance.

6.7 Common open space

Common open space provides an important amenity for residents of flat buildings, partially compensating for the higher densities found in these areas. It needs to provide opportunities for both passive and active recreation and have reasonable dimensions so that it is highly functional.

6.7.1 Objectives

(a) Provide functional and attractive outdoor spaces for residents to engage in active and passive recreational activities

(b) Ensure common open space is provided in proportion to development density

(c) Ensure that residential flat buildings have large areas of function ground level common open space.

6.7.2 Standards

(a) All residents must have access to landscaped common open space.

(b) Common open space must comply with the requirements of the NSW Apartment Design Guide:

(i) Minimum total area equal to 25% of the site

(ii) 3m minimum dimension

(iii) Minimum of 50% direct sunlight for a minimum of 2 hours between 9:00 am and 3:00 pm on 21 June (mid-winter).

(c) 40% of the total common open space must be located at ground level. If no common open space is provided on the rooftop, then the ground level common open space must be increased to 70%.

(d) Common open space above ground level must not exceed a maximum of:

(i) 30% on podium, balcony or terrace areas

(ii) 30% of the total common open space on the roof of the building.

(e) Variations to the ground level common open space standards may be considered if it is demonstrated to Council's satisfaction that:

(i) the development is unable to provide useful open space on the ground level

(ii) suitable active internal open space facilities will be provided, such as a gym or pool.

(f) Common open space must be provided in large consolidated areas which are capable of active use by residents in addition to providing children's play equipment, seating, lighting and other recreational facilities like BBQs or gazebos. These facilities must not be located in the front setback area.

(g) Ground level common open space must include deep soil planting.

(h) Large areas of consolidated planting are preferred over narrow perimeter planting (see Figure 6.3).

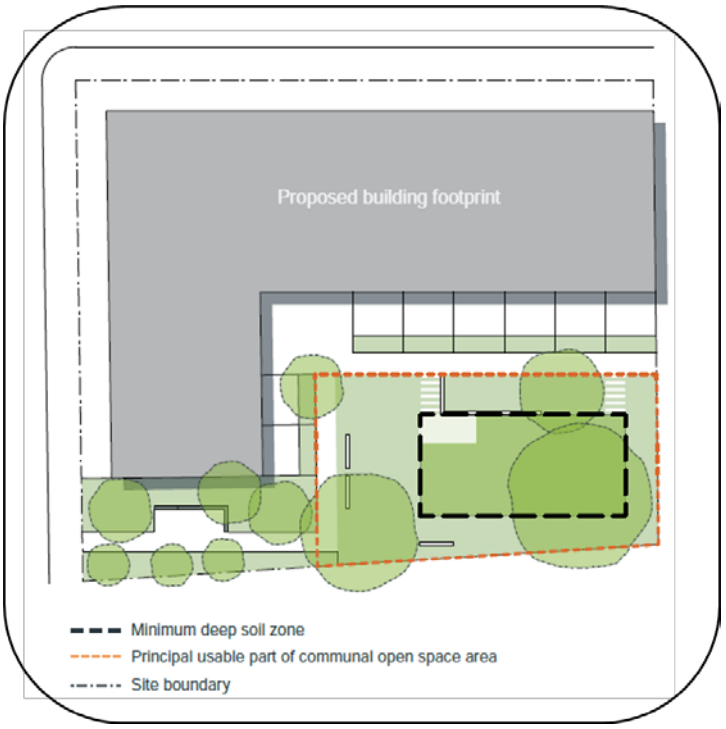


Figure 6.3 **Common open space**
Source: NSW Apartment Design Guide, Planning and Environment NSW

(i) Calculation of the total common open space area must not include:

(i) Any part of the front setback area

(ii) Any area of less than 10sq.m such as small pockets of open space at ground level designed to enhance the appearance of the development

(iii) Any area with a dimension less than 3m

(iv) Parking areas, vehicle accessways, garbage areas or clothes drying areas.

(j) Rooftop and podium common open space must:

(i) Provide suitable shade, drainage and weather protection

(ii) Provide sustainable planting (minimum dimension 1.5m and 0.6m minimum soil depth

(iii) Mitigate wind impacts

(iv) Provide safety around edges for the safety of residents and visitors and pedestrians in the public domain. The Applicant must address how the design will prevent falls and objects being thrown over the side.

(v) Have set hours of operation. As a guide 8am to 8pm is encouraged on weekdays/nights.

6.8 Separation between buildings

6.8.1 Objectives

(a) Protect visual privacy and amenity for residents and adjoining development

(b) To minimise visual impacts of development.

6.8.2 Standards

(a) Separation between buildings must comply with the requirements of the NSW Apartment Design Guide:

(i) The minimum separation for windows and balconies is:

Building height	Habitable rooms/balconies	Non-habitable rooms
4 storeys	12m	6m
5-8 storeys	18m	9m
9+ storeys	24m	12m

Table 6.2 Minimum building separation

(ii) Where more than 1 building is to be erected on a development site, the minimum separation distance between room types is:

Building height	Habitable rooms or balconies	Habitable rooms or balconies and non-habitable rooms	Non-habitable rooms
4 storeys	12m	9m	6m
5-8 storeys	18m	12m	9m
9+ storeys	24m	18m	12m

Table 6.3 Minimum separation for buildings on the same site

(b) Buildings must increase the separation distance from the boundary by 3m when adjacent to lower density residential zones

(c) Maximum 1 step in the building form is preferred to avoid buildings with a 'ziggurat' appearance.

6.9 Site design

6.9.1 Site planning and landscaping

Landscape planning follows a complementary and integrated design process with the development of architectural plans. A detailed analysis of the site and its environs should precede the preparation of the site plan and landscape plan by suitably qualified practitioners. The analysis is fundamental to addressing the factors which condition environmental and urban design outcomes. Landscape planning which attempts to promote cosmetic visual improvement of an otherwise unsatisfactory development will not be supported.

Site landscaping is as important as the architectural design of a development in terms of environmental outcomes and must be carefully planned. The need for an abundance of soft landscaping, the use of suitable plant species (in terms of appearance, ecological appropriateness, safety etc.), the use of salt tolerant plants to combat potentially saline soils and the integration of active and passive recreation areas are some of the many factors that are fundamental to successful flat development.

All landscaping work enhances the existing natural features of the site and adjoining unfenced areas.

Existing natural landscape elements should be conserved and maintained effectively.

All parts of the site not built-upon or paved should be landscaped with grass, trees, shrubs and/or other vegetation. As many trees as possible should be retained on the site.

Landscaping and tree planting play an important role in maintaining biodiversity, creating canopy coverage and providing ecological habitat. Indigenous species should make up a large percentage of the planting mix. Suggested plant communities and species for planting are found in Councils Vegetation Management Plan Guideline booklet:

https://www.blacktown.nsw.gov.au/Plan-build/Stage-2-plans-and-guidelines/Native-vegetation-management

The development site should be densely landscaped to the depth of the setback along the front boundary. Corner sites are also required to incorporate landscaping along the frontage to the minor road to the depth of the setback. Such landscaped areas may contain vehicular and pedestrian accessways only. Parking areas are not permitted in these landscaped areas.

Unless otherwise advised by Council, landscape design and planting of the site should include the footpath nature strip. The developer is to liaise with Council to provide co-ordination between the site and the streetscape.

Each DA is to be accompanied by a landscape plan showing the broad intention of the proposed landscaping on the site, including details of any significant trees requiring removal.

Where there are existing trees on a development site, applicants should have regard to Part 2 *State Environmental Planning Policy (Biodiversity and Conservation) 2021*.

The landscape plan should also indicate:

(a) Areas where earth shaping is proposed

(b) Areas which are to be embellished for purely visual effect

(c) Areas intended for recreation purposes

(d) Areas required for the on-site detention of stormwater

(e) Proposed paving treatment for main entry points and pathways.

Common open space on rooftops must be included in the detailed landscape strategy and plan.

Deep soil zones should be located to retain existing trees and allow adequate clearance around trees for healthy root development.

Deep soil zones must comply with the requirements of the *NSW Apartment Design Guide*.

Site area	Minimum dimension	Minimum size (% of site area)
less than 650sq.m	-	7%
650sqm – 1,500sq.m	3m	
greater than 1,500sq.m	6m	
greater than 1,500sq.m with significant existing tree cover	6m	

Table 6.4 Minimum deep soil zone sizes

6.9.2 Protection of views

The design of developments should minimise the obstruction of views from adjoining buildings.

Council may require an applicant to provide a survey or plan, as part of the DA, showing the position of the proposal on its site, the location of adjoining buildings and the degree of view loss, if any, resulting from the proposal.

6.9.3 Visual and acoustic privacy

In the higher density conditions found in flat buildings, visual privacy and freedom from overlooking is important. Protection from mechanical noise and activity noise in other parts of the development is equally important and steps must be taken to ensure adequate sound amenity.

The development must ensure visual privacy for occupants both during the day and at night.

Outlook and views from private open space areas should be maintained without compromising privacy.

Noise disturbance should be minimised by locating noisy activities and mechanical sources of noise away from living areas and private open space areas.

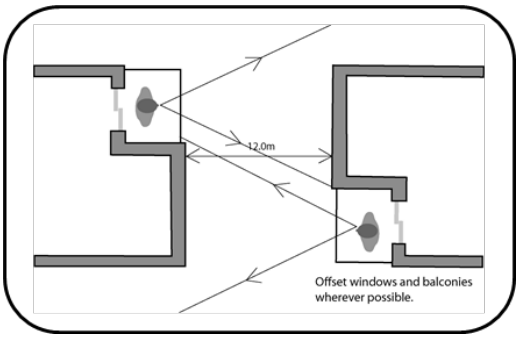


Figure 6.4 Visual and acoustic privacy

Visual privacy is to be maintained by:

(a) Laying out buildings and windows to avoid overlooking opportunities

(b) Separating facing windows by a suitable distance

(c) Off-setting facing windows to avoid direct lines of sight

(d) Admitting light through windows which are narrow or opaque

(e) Ensuring that windows do not face directly onto the windows, balconies or courtyards of adjoining dwellings

(f) Screening opposing windows, or balconies overlooking courtyards using either fixed screens or via landscaping.

Noise disturbance is to be minimised by:

(a) Locating active recreation facilities, such as swimming pools, away from the bedroom areas of adjoining dwellings

(b) Designing communal areas and vehicle driveways to minimise reflected noise

(c) Ensuring that operating plant or equipment does not disturb neighbours

(d) Avoiding noisy walking surfaces, such as suspended timber or metal decks, and reflective internal surfaces to hallways or other communal areas

(g) Ensuring that plumbing noise between dwellings and between buildings is eliminated or contained by the use of ducts, and ensuring wherever possible that bedrooms or living spaces do not back onto the bathroom or toilet walls of adjacent flats.

No electrical, mechanical or hydraulic plant or equipment shall generate a noise level greater than 5dB(A) above the ambient L90 sound level at the boundaries of any allotment at any time of day.

Windows and balconies of dwellings should be separated or screened from common use areas such as paths, driveways, common open space, etc. Screens could include courtyard walls, hedges and fences, whilst separation could be achieved by either distance or changes in level.

6.9.4 Orientation

Correct orientation is vital to ensure optimum solar access for the majority of units, but must be balanced against other concerns including configuration of the land, the need to maintain an appropriate 'address' and to maximise enjoyment of view.

The site and development should be planned to optimise solar access by:

(a) Positioning and orientating walls of flat buildings to maximise north facing walls (i.e. walls facing between 30 degrees east and 20 degrees west of north)

(b) Selecting apartment plan types which maximise living spaces within flat buildings with a north orientation (e.g. apartments which run the full width of the development block and face north).

6.9.5 Parking provision

Refer to Part A for Council's off-street car parking rates.

6.9.6 Vehicle and pedestrian access

Appropriate access arrangements ensure that the main entrances to the development or individual units are attractively landscaped, clearly address the main access street, and can be subject to surveillance of visitors to the development. The development must also provide clear, separate, convenient and safe access to parking and servicing areas.

6.9.7 Public road access and construction

Council requires public road access to a standard appropriate to the new development and half-width road construction with associated transition works adjacent to the frontage of the development, funded in full by the developer and dedicated to Council at no cost. Such work shall include conventional kerb and gutter or roll-over kerbing and road pavement construction and drainage in accordance with detailed plans submitted to and approved by Council.

Concrete path paving in accordance with Council's standards shall be provided along the full frontage of the development to any road.

Vehicular crossings (of public road reservations) are to be located so as to avoid disturbing trees or any service installation including road and drainage structures, sewer vents, service poles, light standards, utility installations etc. Alternatively, an applicant can make arrangements with the relevant service authority for the relocation of plant and equipment not owned by Council at no expense to Council.

6.9.8 Accessways

An ***accessway*** is defined as an area or road for the access and manoeuvring of vehicles within the boundaries of a development, but does not include car parking spaces.

The common accessway pavement shall be 6m wide from the street to the building setback. Consideration needs to be given to maximising the distance between the accessway and intersections and traffic lights.

All accessways shall be constructed to Council's standards appropriate to the type and volume of traffic it is assessed they will carry. Long straight driveways are to be avoided. Direct access to the units from driveways is to be avoided as far as possible in the design of the project. Where direct access is present, then speed humps shall be constructed on the driveway to the satisfaction of Council.

Council will assess the suitability of vehicular accessways for cars and garbage trucks by reference to State Government standards.

6.9.9 Fencing and screen walls

Screen walls which face a road, pedestrian walkway, reserve or public place shall be staggered and constructed of brick or open style palisade fence. A screen wall may incorporate other building materials, provided in the opinion of Council such materials enhance the physical appearance of the development.

Site boundaries not fronting a street, pedestrian walkway, reserve or public place shall be fenced in accordance with Council's requirements, at full cost to the developer.

Common open space areas are to be enclosed by open style fencing, such as pool fencing, and provided with a latch-top childproof gate. This is to ensure that the common open space areas have been suitably secured.

Clothes drying areas should be located away from the street or public places. Where this cannot be avoided, they shall be totally screened from public view.

Clothes drying areas shall be screened by walls 1.8m high. No such wall is to contain any windows of an adjoining dwelling unit.

Swimming pools must be fenced in accordance with the provisions of the *Swimming Pools Act 1992*.

Details of fencing must be shown on the required building plans and landscape plans.

6.9.10 Podium design

Podiums over basement parking projecting more than 0.5m above natural ground level count as a storey. Podiums shall not be constructed beyond the setback line.

6.9.11 Accessibility provisions

Not less than 10% of units in the whole development or one unit (whichever is the greater number of units) shall be designed for persons with a disability.

In buildings having no lift, such units must be located on the ground floor and be accessible by a safe path of travel to the main entrance to the street.

Refer to Part A for Council's off-street car parking rates for persons with a disability.

Buildings containing 4 or more levels, including the basement, must have lift access to all levels.

6.9.12 Safety and security

The development is to maintain and enhance the safety and security of the locality. In particular:

(a) Buildings are to overlook streets and entrances to facilitate casual surveillance

(b) Service ways, paths and parking areas are to be either secured or designed to allow casual surveillance

(c) There is to be adequate lighting of entrances, pedestrian areas and common open space areas

(d) Pedestrian entrances to the development are to be from public streets

(e) Buildings shall be constructed in external materials that are robust, durable and discourage vandalism and graffiti.

6.10 Building design

6.10.1 General

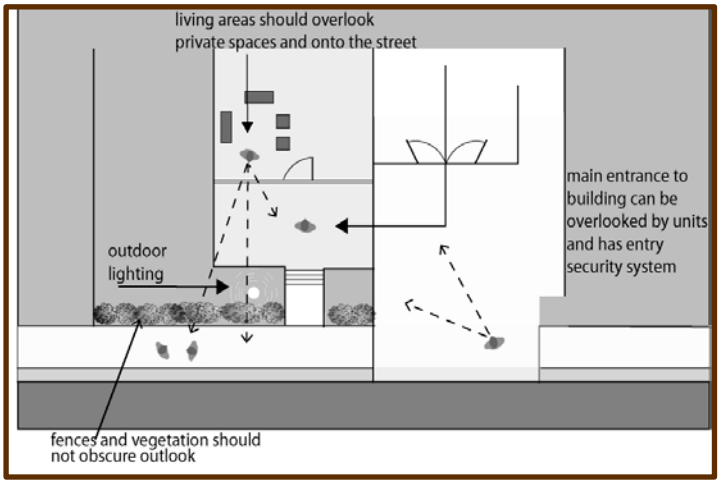


Figure 6.5 Security design elements intended to achieve crime prevention

All new residential flat development shall generally be designed in accordance with contemporary design principles, and for development 3 storeys and above designed by a Registered Architect.

A photomontage and sample board showing all external materials and colours are to be submitted with the DA.

Floor plans of units are to be designed to ensure that the amenity of the future occupants is to the satisfaction of Council. Units are to be provided with a separate self-contained laundry, full kitchen and ample living areas.

6.10.2 Unit types in the development

Units shall be provided in accordance with likely market expectations.

Developments shall contain a mix of 1, 2 and 3 bedroom units.

6.10.3 Floor to ceiling height

(a) Floor to ceiling height must provide adequate amenity, scope for ventilation, insulation, flexibility of use and headroom for ceiling mounted ducts in corridors or bathrooms.

(b) All ceiling heights must comply with the design criteria in the NSW Apartment Design Guide:

Minimum floor to ceiling dimensions for different room types – as measured to the underside of the constructed floor	
Room type:	
Habitable rooms and corridors	2.7m
Non-habitable rooms	2.4m
Second storey of 2 storey units	2.4m

Attic spaces (require minimum roof slope of 30 degrees)	1.8m
Mixed use areas (ground and first floor levels)	3.3m

Table 6.5 Minimum floor to ceiling heights

6.10.4 Passenger lift access

Passenger lift access is required for any residential flat building either 4 levels above ground with no basement parking or 3 levels above ground and including basement parking.

6.10.5 Balconies

(a) All balconies and private open space must comply with the requirements set out in the NSW Apartment Design Guide:

Apartment type	Minimum area	Minimum depth
Studio	4 sqm	-
1 bedroom	8 sqm	2m
2 bedroom	10 sqm	2m
3 bedrooms or more	12 sqm	2m
Ground level (terraces/courtyards)	15 sqm	3m

Table 6.6 Minimum size of balconies and private open space

(b) Calculation of the balcony area must not include any area less than 1 m in depth or any storage facilitates

(c) Balconies must not be enclosed except with pre-lodgement approval from Council. All balcony enclosures must comply with the Building Code of Australia.

(d) Balcony balustrades must be constructed of materials that provide contrast with the main wall of the building to create visual interest.

(e) Clothes hanging/drying on balconies must not be visible from the public domain.

6.10.6 Internal and external shading and solar access

Freedom from overshadowing and enjoyment of solar access in living spaces and open space areas are important amenity design elements in housing.

The level of solar access and overshadowing is affected by factors relating to the siting of the development and the internal layout of the individual apartments. Sometimes these matters have to be balanced against other planning considerations such as aspect, address or views.

Often, significant improvements to amenity can be achieved by minor changes in layout and siting at no significant additional cost to the project.

(a) The building design and site layout must ensure adequate solar access to the internal living spaces of the proposed and adjoining developments.

(b) Solar access must comply with the requirements set out in the NSW Apartment

Design Guide:

(i) Living rooms and private open spaces of at least 70% of apartments in a building receive a minimum of 2 hours direct sunlight between 9am and 3pm at mid-winter

(ii) A maximum of 15% of apartments in a building receive no direct sunlight between 9am and 3pm at mid-winter.

(c) Private open space areas on the site and adjoining land must maintain reasonable solar access throughout the year.

(d) 50% of the common open space area at ground level must receive a minimum of 2 hours of sunlight between the hours of 9am and 3pm on 21 June.

(e) A minimum of 50% of the principal area of ground level open space in adjacent properties must receive a minimum of 2 hours direct sunlight between 9am and 3pm on 21 June. If the level of solar access is already less than this, sunlight must not be further reduced by more than 20%.

(f) The DA must have shadow diagrams showing the impact of the proposal on the site and on adjoining sites between the hours of 9am and 3pm on 21 June. These diagrams must:

(i) be prepared by a suitably qualified professional

(ii) be based on a survey of the site and buildings on adjoining sites

(iii) include details of finished ground levels.

6.10.7 Natural ventilation

(a) Ventilation must comply with the requirements in the *NSW Apartment Design Guide*:

(i) 60% of all apartments must be naturally cross ventilated in the first 9 storeys of a residential flat building

(ii) Over-all depth of a cross-over of cross-through apartment must not exceed 18m (measured glass line to glass line).

(b) Site planning must promote and guide natural breezes by:

(i) Orientating the building to the prevailing breeze

(ii) Locating vegetation to direct breezes and cool air across the site.

(c) The design of apartments must facilitate natural ventilation as shown in the alternative diagrammatic airflow paths below:

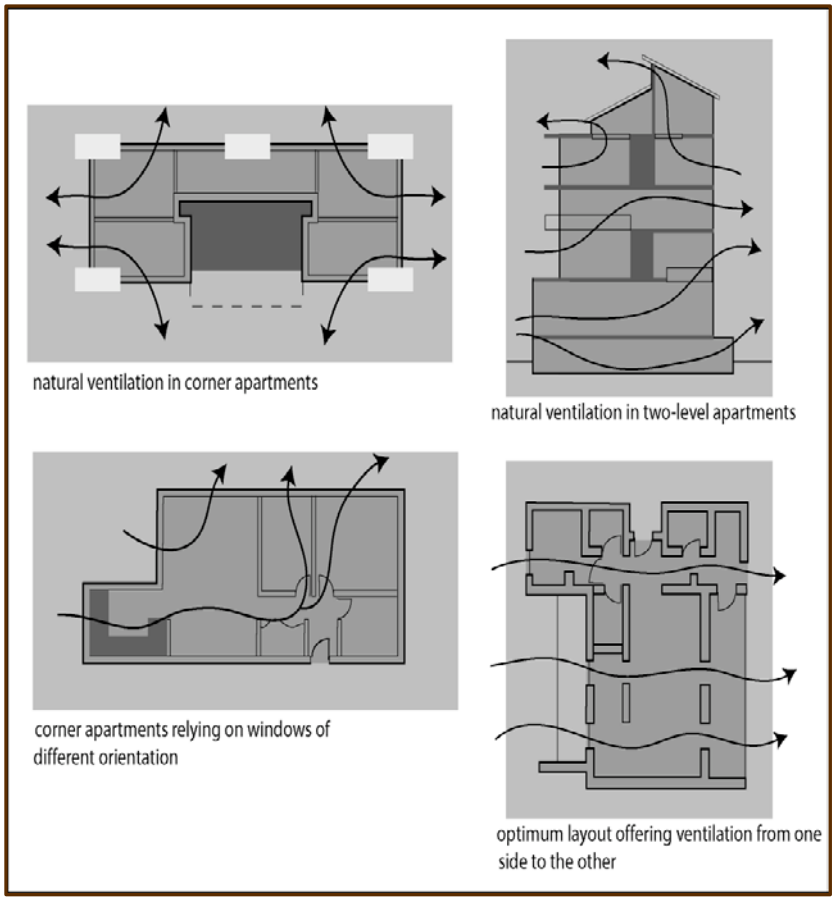


Figure 6.6 Airflow paths designed to achieve good natural ventilation

6.10.8 Energy performance and sustainability

The BASIX for residential flat buildings applies to all new development. A BASIX Certificate is to accompany the DA.

6.10.9 Provision for services

Should an electricity substation (located within the site area or on the street frontage of the site) be necessary, the requirements of both Council and the relevant electricity provider shall be met. All electrical reticulation within the site shall be underground.

Provision shall be made to illuminate all common accessways and driveways to the satisfaction of Council. Spacing between lights should not exceed 20m. All common accessways shall be lit at the footway crossing by an approved means from dusk to dawn.

A master television antenna is to be installed within the roof of each building and provision for connection thereto is to be made to each dwelling.

A toilet accessible by residents, visitors and maintenance contractors should be provided within the ground floor of the building.

6.10.10 Provision for other building services

Provision for all necessary services must be considered at the DA stage to avoid the necessity for changing room sizes and ceiling heights later at the Construction Certificate stage.

The external walls of the development shall be maintained free of other services, fixtures and

appliances including:

(a) Sewerage stackwork and sanitary plumbing

(b) Water plumbing and fixtures

(c) Wall mounted air conditioning

(d) Air conditioning ductwork

(e) Service conduits or wiring (for electricity, telephone, cable television and internet etc.).

All such services shall be contained within service ducts or plant rooms and documented in the DA.

6.10.11 Laundry facilities

The development shall provide a single communal area for wet weather drying of laundry, having a minimum area of 20sq.m for developments up to 10 units, with an additional 10sq.m per 10 units thereafter to a maximum size of 60sq.m. This facility may not be located at roof level.
The following clothes drying facilities are required for each dwelling within a building:

(a) 7.5m of external clothes drying line in a suitably screened position which receives adequate sunlight and does not compromise the common open space requirement; or

(b) Mechanical drying appliance within the dwelling unit.

6.11 Drainage

Adequate provision must be made for the collection and disposal of surface and roofwater runoff. All stormwater shall be either reticulated to the street gutter or piped to a suitable location as approved by Council.

Where a site proposed for a residential flat building falls away from the fronting street, the DA must include documentation establishing a suitable drainage solution including inter-allotment drainage (and proposed easement) through downstream properties, and written permission from downstream property owners where applicable. Section 88K of the *Conveyancing Act 1919* provides suitable mechanisms to negotiate the creation of easements where an amicable arrangement cannot be made. Council will not support the placement of fill on land to channel stormwater drainage back to the street.

6.12 Checklist of numerical standards for residential flat buildings

Standard and DCP reference		Required	Provided in proposal
6.4	Development site parameters: width, depth and area	Minimum dimensions 30m x 30m	
6.6	**Minimum setbacks:** • front • rear and side	 9m 6m	
6.7	Minimum common open space provision	Equal to 25% of site area Max. 30% on roof Max. 30% on podiums or balconies Min. 40% on ground (Note: This must be increased to 70% if no rooftop common open space)	
6.8	Separation between buildings	9 + storeys: 12-24m, up to 8 storeys: 9-18m, up to 4 storeys: 6-12m	
6.9.11	Minimum provision of disabled units	Minimum of 1 accessible unit or 10% (whichever greater)	
6.10.3	Minimum floor to ceiling dimensions	Habitable rooms and corridors 2.7m Non-habitable rooms 2.4m Second storey of 2 storey units 2.4m Attic spaces (30^0 minimum roof pitch) 1.8m Mixed use areas 3.3m	
6.10.5	Minimum balcony size	4 sqm	

Standard and DCP reference		Required	Provided in proposal
6.10.6	Solar access and overshadowing	Min. 70% of units 2 hrs in midwinter Min. 50% common open space 2hrs in midwinter	
6.10.7	Natural ventilation	Min. 60% cross ventilation	
6.10.12	Laundry facilities	Communal area - wet weather drying minimum area of 20sq.m up to 10 units, plus 10sq.m per 10 units thereafter to a maximum of 60sq.m. 7.5m of external clothes drying line or mechanical drying appliance within the dwelling unit.	

7 Seniors housing

7.1 Provisions of the State policy and Blacktown Local Environmental Plan 2015

Seniors housing is permissible with development consent in the 4 residential zones in Blacktown. Council will require compliance with the development standards identified in *State Environmental Planning Policy (Housing for Seniors or People with a Disability) 2004*, in addition to the specific additional requirements outlined below.

7.2 Additional council requirements

7.2.1 Types of housing for seniors or people with a disability

Where housing for seniors or people with a disability is to be constructed in the general form of a dwelling house, multi dwelling housing, attached dwellings or a residential flat building, the provisions of Blacktown LEP 2015 and this Part of Blacktown DCP 2015 related to those forms of development will apply.

7.2.2 Height of buildings

Depending on the level of disability involved, buildings for seniors or people with a disability should be 1 storey in height.

7.2.3 Minimum room sizes

Room sizes of self-contained dwellings and hostel accommodation shall comply with the provisions of the *Building Code of Australia*.

7.2.4 Designing for people with a disability

The requirements of persons with specific disabilities should be considered in order to enable maximum access and ease of movement within dwellings. Access for persons in wheelchairs should be provided where appropriate.

Designs should incorporate ramps, rather than steps, and steep slopes on external pathways should be avoided. All applicants must submit with their DA accurate elevation plans of the proposal which show existing and final ground levels on the site, with cut and fill details. Anthropometric details for fittings and construction based on the needs of seniors or wheelchair-confined people should be carefully considered with special attention to the location of cupboards, beds, switches etc.

Units should be orientated to receive direct sunlight to habitable rooms during winter months. Balconies should be provided wherever possible and consideration should be given to the provision of windows that afford views from a sitting position. Applicants may be required by Council to demonstrate that adequate solar access is achievable for each dwelling unit.

A variety of sizes of self-contained dwellings should also be provided wherever practicable.

7.2.5 Laundries

Automatic washing and drying facilities shall be provided to the satisfaction of Council. Where common use facilities are provided, the laundry shall contain 1 washing machine and 1 drier for each 6 units and shall be located close to outdoor drying areas.

Provision shall be made on the site for a small workbench and gardening equipment, adequately housed and accessible for use by residents.

7.2.6 Wheelchair access

Wheelchair access shall be in accordance with *Australian Standard 1428 – 2003 Design for access and mobility* and the requirements of the *Building Code of Australia*.

The maximum gradient for internal and external wheelchair access areas and pathways shall be 1:12.

7.2.7 Facilities for nursing and convalescent homes and hostels

All nursing and convalescent homes and hostel developments should provide on-site the following facilities:

(a) Consulting rooms for medical services
(b) Caretaker's office
(c) Kitchen area
(d) Craft/communal activities room
(e) Reading library area
(f) Television viewing area
(g) Dining room
(h) A small canteen.

7.2.8 Community facilities for self-contained dwellings

All developments shall provide suitable indoor and outdoor community facilities for the use of residents and their visitors. The extent of the community facilities required will depend upon the scale of the development and the proximity of the development to suitable external community facilities.

7.2.9 Common rooms

All developments shall provide a suitable common room facility. The common room shall be centrally located and easily accessible to all residents.

All common rooms shall have a heating facility and cross ventilation to assist cooling. Access to winter sunshine shall be maximised and shade from summer sun ensured.

The minimum size of the common room shall vary in accordance with the size of the development as follows:

Development size	Site area/dwelling
Up to 59 units	1 - 2 units of equivalent area
60-99 units	2 - 3 units of equivalent area
100 or more units	At least 3 units of equivalent area

Table 7.1 Minimum size of common room

In relation to the above table, a ***unit*** means a self-contained dwelling occurring predominantly within the development.

Larger common rooms, for developments of over 60 self-contained dwellings, shall provide space for a variety of activities to be carried out concurrently.

7.2.10 Car parking

Refer to Part A for Council's off-street car parking rates.

Parking rates for Seniors Housing and some land uses are not specified as they are regulated by State Environmental Planning Policies (e.g. Boarding Houses and Group Homes under the Affordable Rental Housing SEPP and Seniors Housing under the *Housing for Seniors or People with a Disability SEPP)*.

8 Non-residential development in the residential zones

8.1 General requirements

8.1.1 Provisions of Blacktown Local Environmental Plan 2015

The 4 residential zones designated in Blacktown LEP 2015 permit a range of non- residential land uses which, depending upon their scale, location and design, may be compatible with adjoining residential uses. Development consent may be required for non- residential uses in residential zones, other than hobby type activities not conducted as a business or where not required under the provisions of *SEPP (Exempt and Complying Development Codes) 2008.*

8.1.2 Additional information

Depending upon the scale of the non-residential development, Council may require the submission of additional information to demonstrate that the development will not adversely affect the existing or future amenity of the surrounding residential area.

Such information may include a noise impact assessment, advice on traffic generating potential, solar access and/or evidence that the proposed land use cannot be accommodated within zones principally set aside for that purpose.

8.1.3 Matters of consideration

Council will have particular regard to the effects of non-residential development in the residential zones. Council will consider whether:

(a) As a result of the height and/or scale of any proposed buildings, the development will be out of character with surrounding residential development

(b) An undesirable effect on the amenity of the surrounding area will be created

(c) The use will draw patronage from areas outside the surrounding neighbourhood

(d) A noise nuisance will be created

(e) The development will generate traffic out of keeping with the locality

(f) Adequate car parking and loading facilities are provided

(g) Adequate provision is made for access by persons with a disability.

Other specific considerations for particular land uses are outlined below.

8.1.4 Urban design

Council's general objective for non-residential development in residential zones is that such development should be similar in bulk, scale, form, height, siting and appearance to the surrounding built residential environment. To meet this objective, special attention to design, finishes, roof form, materials, paving and landscaping may be required.

All applicants must submit with their DA accurate elevation plans of the proposal, which show existing and final ground levels on the site, with cut and fill details.

8.1.5 Setbacks of buildings

In general, non-residential buildings shall be setback in line with adjoining residential development or, where residential development is not yet built, at the same distance from boundaries as is required for medium density housing.

8.1.6 Off-street car parking

Refer to Part A for Council's off-street car parking rates.

8.2 Places of public worship and educational establishments

8.2.1 Definitions

Blacktown LEP 2015 has adopted the following definitions:

Place of public worship means a building or place used for the purpose of religious worship by a congregation or religious group, whether or not the building or place is also used for counselling, social events, instruction or religious training.

Educational establishment means a building or place used for education (including teaching), being:

(a) A school, or

(b) A tertiary institution, including a university or a TAFE establishment, that provides formal education and is constituted by or under an Act.

8.2.2 Locational preferences

Applications for these land uses in the residential zones will be considered in relation to the merits of the particular application. Such uses are preferably located where access to collector roads and public transport routes is readily available, and/or where there are other non-residential land uses adjoining.

Due to the nature of their usage, such developments should be sited on allotments which provide sufficient buffering from adjoining developments so as to minimise possible impacts, such as noise and invasion of privacy.

In assessing such applications, Council will consider whether the development takes into consideration the privacy of adjoining developments, urban design, location, the size of the land where the development is proposed, the availability of on-site parking and matters contained under Section 4.15 of the *Environmental Planning and Assessment Act 1979*.

8.2.3 Pedestrian safety measures

A traffic report/statement is to accompany the DA, addressing the impact of the land use on the local road system.

Due to the number and age of persons accessing an educational establishment, it is considered paramount that appropriate pedestrian safety measures are installed. Such measures may include wombat pedestrian crossings, pedestrian refuges on streets to which the development fronts and the provision of bus bays and 40 kph speed zones for schools.

8.2.4 Landscaping

In order to protect the privacy of adjoining residences and to provide for adequate noise abatement, site landscaping, and including mounding and lapped and capped timber or brick fencing, may be required. Such landscaping is to be in keeping with adjoining developments.

A landscape plan and associated documentation is to be submitted with the DA, identifying

existing vegetation and community plant species and/or existing design elements of the site layout.

8.2.5 Off-street car parking

Refer to Part A for Council's off-street car parking rates.

The provision of overflow parking may be necessary, particularly where developments incorporate halls used for social gatherings. Overflow parking areas could be provided on open grassed areas and may not need to be formally sealed or line-marked. Proposed overflow parking areas are to be clearly shown on plans submitted with the DA.

8.2.6 Specific design requirements for schools

Before determining a DA for development for the purpose of a school, the relevant standards in the following State Government publications must be incorporated in the design of a school:

(a) *Schools Facilities Standards – Landscape Standard*

(b) *Schools Facilities Standards – Design Standard*

(c) *Schools Facilities Standards – Specification Standard*

8.3 Child care facilities

8.3.1 Introduction

This section provides guidelines and controls for the establishment and development of child care facilities. It also provides guidance for preparing a Development Application.

8.3.2 Objectives

(a) To ensure that all local communities have convenient access to high quality child care services

(b) To ensure that child care facilities provide a safe, healthy and active environment for the care and development of children

(c) To promote design excellence in child care development

(d) To ensure that child care facilities will satisfy local demand for child care places, including the provision of more places for children under 2 years of age

(e) To protect and preserve the amenity and character of residential neighbourhoods

(f) To ensure that safe access and car parking is provided for staff and visitors

(g) To ensure that the principles of ecologically sustainable development are implemented in the provision of child care services

(h) To provide guidance on preparing a Development Application (DA) for child care facilities.

8.3.3 SEPP (Education and Child Care) 2017 and the Child Care Planning Guideline

State Environmental Planning Policy (Educational Establishments and Child Care Facilities) 2017 and the *Child Care Planning Guideline* apply to all development for child care in NSW. This includes all new and existing child care facilities.

All Development Applications must demonstrate how the development complies with:

- the National Quality Framework for Early Childhood Education and Care Facilities
- the relevant objectives, provisions and considerations in the SEPP and the *Child Care Planning Guideline*

This DCP does not apply where it is inconsistent with the SEPP or the Guideline (except for building height, side and rear setbacks or car parking rates).

8.3.4 Definitions

early education and care facility means a building or place used for the education and care of children, and includes any of the following:

(a) a centre-based child care facility,

(b) home-based child care,

(c) school-based child care.

centre-based child care facility means:

(a) a building or place used for the education and care of children that provides any one or more of the following:

(i) long day care,

(ii) occasional child care,

(iii) out-of-school-hours care (including vacation care),

(iv) preschool care, or

(b) an approved family day care venue (within the meaning of the *Children (Education and Care Services) National Law (NSW)*),

Note. An approved family day care venue is a place, other than a residence, where an approved family day care service (within the meaning of the *Children (Education and Care Services) National Law (NSW)*) is provided.

but does not include:

(c) a building or place used for home-based child care or school-based child care, or

(d) an office of a family day care service (within the meanings of the *Children (Education and Care Services) National Law (NSW)*), or

(e) a babysitting, playgroup or child-minding service that is organised informally by the parents of the children concerned, or

(f) a child-minding service that is provided in connection with a recreational or commercial facility (such as a gymnasium) to care for children while the children's parents are using the facility, or

(g) a service that is concerned primarily with providing lessons or coaching in, or providing for participation in, a cultural, recreational, religious or sporting activity, or providing private tutoring, or

(h) a child-minding service that is provided by or in a health services facility, but only if the service is established, registered or licensed as part of the institution operating in the facility.

8.3.5 Setbacks

■ **Objectives**

(a) To ensure that setbacks are compatible with adjacent development and

preserve residential amenity

(b) To ensure residential streetscapes are safe and aesthetically pleasing

(c) To ensure that setbacks respect site constraints and preserve significant landscape features.

■ **Controls**

(a) The minimum side and rear boundary setback is 1 m

(b) The minimum front setbacks are:

(i) 6 m in R1, R2 and R3 residential zones

(ii) 9 m in R4 residential zones

(iii) 3 m for the secondary street frontage on corner lots

(iv) 2 m for car parking areas.

(c) Setback areas must only be used for access, parking and landscaping purposes

(d) Outdoor play space and basements are not permitted in the setback

8.3.6 Building height and design

■ **Objectives**

(a) To promote a high standard of design that is consistent with the desired character of the area and enhances the existing streetscape

(b) To provide a safe healthy, functional and educational environment for children

(c) To provide attractive and adaptable spaces that cater to the needs of all people within the community.

■ **Controls**

(a) Development of new free-standing child care facilities must not exceed 2 storeys in height

(b) Child care facilities must be located on the ground floor of a building

(c) Any storeys above ground floor level must not be used for purposes other than storage or for staff facilities.

8.3.7 Car parking and access

■ **Objectives**

(a) To maintain a safe environment for pedestrians, vehicles and cyclists

(b) To ensure that the parking is provided on-site and will not adversely impact on the amenity of adjoining properties

(c) To ensure that the traffic generated by the development does not adversely impact on local traffic conditions and road safety.

■ **Controls**

(a) Refer to Part A of BDCP 2015 for off-street car parking rates

(b) The minimum number of car parking spaces is to be rounded up to the

nearest whole number if it is not a whole number

(c) An application to amend the terms of any consent must address the need for additional car parking if the allocation of places for children or staff numbers change

(d) Stacked car parking arrangements are prohibited

(e) A designated space must be provided close to the main entrance of the child care facility for disabled parking and/or service vehicles

(f) An additional parking space must be provided if a designated cook will be employed to prepare food for children

(g) Developments that include a dwelling component must provide a minimum of 2 additional parking spaces exclusively for use by the occupants next to the dwelling, including at least 1 covered car space

(h) All vehicles must enter and exit the site in a forward direction

(i) The development application must include a traffic and parking report

8.3.8 Approvals

A child care facility requires 2 approvals:

- **Development Application**

  Development Consent is required from Blacktown City Council under the *Environmental Planning and Assessment (EP&A) Act 1979*.

  Consent from Council is also required for the expansion or alteration of an existing child care facility, including:
  - physical changes to the building, provision of play space or access arrangements
  - increasing the approved number of children
  - amending the hours of operation
  - the establishment of Out-of-School Hours (OOSH) care.

  Development Applications for child care facilities will be assessed on their merits and against the provisions of *State Environmental Planning Policy (Educational Establishments and Child Care Facilities) 2017* and the *Child Care Planning Guideline, Blacktown Local Environmental Plan 2015* and Blacktown Development Control Plan 2015.

- **Approval to operate**

  An approval to operate is required from the NSW Department of Education.

  In the case of alterations to an existing child care facility, a new approval from the NSW Department of Education may be required once Council has provided Development Consent.

  To obtain an approval, the *Education and Care Services National Law* requires a child care services operator to comply with the *Education and Care Services National Regulations*.

  The Regulations are on the Australian Children's Education and Care Quality Authority's website: www.acecqa.gov.au.

8.3.9 Pre-lodgement meeting

Applicants are encouraged to discuss proposals with Council before preparing a development application. This ensures that any site issues or design constraints are identified before any detailed plans or reports are prepared.

Prior to a pre-lodgement meeting, applicants should review:

- *State Environmental Planning Policy (Educational Establishments and Child Care Facilities) 2017* and the *Child Care Planning Guideline*
- Council's development controls and guidelines
- the requirements of the *Education and Child Services National Regulations* and National Law

8.3.10 Development Application submission requirements

All plans and supporting documentation must be prepared by a suitably qualified consultant.

At a minimum an application for a child care facility must include:

(a) a site plan

(b) architectural plans

(c) A location analysis plan showing all existing and approved child care centres within a 2 km radius

(d) a landscape plan and associated documentation to identify:

  (i) existing vegetation and community plant species

  (ii) design elements of the site layout including shade measures for play spaces and fencing

(e) a statement of environmental effects

(f) a written statement signed by the architect and prospective child care service provider (if available) acknowledging that the plans have been prepared in accordance with the *Education and Child Services National Regulations*

(g) a schedule of external materials and colours

(h) a traffic and parking report

(i) an acoustic report

(j) an operational plan of management for the proposed child care facility

(k) a fire safety and evacuation plan

(l) A waste management plan

(m) A land contamination report for sites in close proximity to rural or industrial land.

Additional documentation will be required to address specific site or design issues (for example a crime risk assessment report, flora and fauna assessment report or a geotechnical report)

8.3.11 Blacktown City Council Child Care Centre Guide 2016

Council's Child Care Centre Guide 2016 contains further detailed requirements for the internal design, external design and child safety.

8.4 Neighbourhood shops

8.4.1 Definition

Neighbourhood shop means premises used for the purposes of selling general merchandise such as foodstuffs, personal care products, newspapers and the like to provide for the day-to-day needs of people who live or work in the local area, and may include ancillary services such as a post office, bank or dry cleaning, but does not include restricted premises.

8.4.2 Provisions of Blacktown Local Environmental Plan 2015

Clause 5.4 of Blacktown LEP 2015 provides Council's general requirements for neighbourhood shops within the Residential zones. In summary, such businesses shall have a gross retail floor area not exceeding 80sq.m.

8.4.3 General provisions

A neighbourhood shop shall not be located within 400m by road (existing or proposed) of a general business zone or another existing or approved neighbourhood shop and shall not adversely affect local traffic conditions and residential amenity.

8.4.4 Landscaping

In order to ensure that neighbourhood shops are sympathetic to the streetscape, similar materials to adjoining buildings are to be used.

Any area of land between the front property boundary and the building alignment, exclusive of approved driveways and parking areas, is to be landscaped to the satisfaction of Council.

8.4.5 Ancillary uses

Hot food sections are permissible with Council consent within existing and proposed neighbourhood shops where they are ancillary to the principal use of a mixed business and where the proportion of the floor area proposed for hot food sales does not exceed 33% of the total floor area.

8.4.6 Design requirements

In view of the difficulties associated with converting or extending existing dwellings to a neighbourhood shop use (such as providing adequate car parking and delivery areas), Council will generally only favour the construction of a neighbourhood shop as a new building. Conversions or extensions to existing dwellings are not encouraged.

8.4.7 Access, car parking and deliveries

The site should not gain access to:

(a) A road with clearway or other parking restrictions

(b) A road zoned SP2 Infrastructure – Classified Road or Local Road.

Any proposed development should not create a traffic hazard and therefore should not be located near frequently used intersections, pedestrian crossing or traffic lights.

At least 3 car parking spaces are required to be provided on site in addition to 1 space for the dwelling (if applicable). The design of the building is to provide suitable access for deliveries.

To encourage the use of off-street parking, car parking spaces should preferably be located at the front of the site provided they are adequately screened, landscaped and signposted. If rear car parking is proposed, it must be clearly signposted to indicate its availability from the street.

Parking areas shall be designed and constructed in accordance with the provisions of Section 7 of Part A (Introduction and General Guidelines) of the DCP.

8.5 Health consulting rooms

8.5.1 Definition

Health consulting rooms means premises comprising one or more rooms within (or within the curtilage of) a dwelling house used by not more than 3 health care professionals at any one time.

8.5.2 Provisions of Blacktown Local Environmental Plan 2015

In order to allow health services to be provided in close proximity to residential development, health consulting rooms are permissible with development consent in the residential zones.

8.5.3 Development Application requirements

In addition to the information required by Council as part of the DA form, the applicant should also specify the number of practitioners and employees proposed to operate from the site.

8.5.4 Access and car parking requirements

The site should not gain access to:

(a) A road with clearway or other parking restrictions

(b) A road zoned SP2 Infrastructure – Classified Road or Local Road.

Any development is not to create a traffic hazard, particularly near frequently used intersections, pedestrian crossings or traffic lights.

To encourage the use of off-street parking, car parking spaces may be located at the front of the site provided they are adequately screened, landscaped and signposted. Access to a rear car parking area shall be clearly signposted to indicate its availability from the street.

Parking areas shall be designed and constructed in accordance with the provisions of Section 7 of Part A (Introduction and General Guidelines) of the DCP.

8.5.5 Distance separation requirements

DAs for health consulting rooms will generally only be approved by Council where the following distance separation requirements have been satisfied:

(a) The proposed site is not to be within 150m, by straight line distance, of an existing or approved professional consulting room that is located in a residential zone

(b) The proposed site is not to be within 150m, by straight line distance, of a zoned business area

(c) The proposed site is not to be within 150m, by straight line distance, of an existing or approved ‘office premises’ which is used by a member of the health care profession.

(d) The proposed site is not to be within 150m, by straight line distance, of an existing or approved ‘home business’ which is used by a member of the health care profession.

The objective of the distance separations is to maintain the integrity of zoned business centres and minimise the impacts of commercial activity outside the core business areas. The separation distance also disperses non-residential developments so that impacts such as noise and traffic are dispersed and not concentrated in one stretch of a residential street.

8.5.6 Landscape requirements

The area between the front property boundary and the building alignment, exclusive of approved driveways and parking areas, is to be landscaped to the satisfaction of Council.

8.5.7 Access by disabled persons

All health consulting room developments must provide adequate access for the disabled to Council's satisfaction.

8.6 Home businesses and veterinary hospitals

8.6.1 Definitions

Home business means a business that is carried on in a dwelling, or in a building ancillary to a dwelling, by one or more permanent residents of the dwelling and that does not involve:

(a) The employment of more than 2 persons other than those residents, or
(b) Interference with the amenity of the neighbourhood by reason of the emission of noise, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit, oil, traffic generation or otherwise, or
(c) The exposure to view, from any adjacent premises or from any public place, of any unsightly matter, or
(d) The exhibition of any signage (other than a business identification sign), or
(e) The sale of items (whether goods or materials), or the exposure or offer for sale of items, by retail, except for goods produced at the dwelling or building,

but does not include bed and breakfast accommodation, home occupation (sex services), or sex services premises.

Veterinary hospital means a building or place used for diagnosing or surgically or medically treating animals, whether or not animals are kept on the premises for the purpose of treatment.

8.6.2 Provisions of Blacktown Local Environmental Plan 2015

Clause 5.4 of Blacktown LEP 2015 states that no more than 50sq.m of floor area can be used for the purpose of a home business.

The intention of allowing a home business or veterinary hospital in residential areas is to provide professional services (outside of the health care profession) to service the local community.

Council may refuse consent where suitable space is readily available for the development within nearby business zones.

8.6.3 Off-street car parking

Refer to Part A for Council's off-street car parking rates.

8.6.4 Distance separation requirements for home business

A DA for a home business will generally only be approved by Council where the following distance separation requirements have been satisfied:

(a) The proposed site is not within 150m, by straight line distance, of a zoned business area

(b) The proposed site of a home business to be used by a member of the health care profession is not to be within 150m, by straight line distance, of an existing or approved health consulting room

(c) The proposed site of a home business to be used by a member of the health care profession is not to be within 150m, by straight line distance, of an existing or approved home business also used by a member of the health care profession

(d) The proposed site is not to be within 150m, by straight line distance, of an existing or approved "home occupation" which is used by a member of the health care profession.

8.6.5 Statutory declaration for home business

In addition to the information required to be submitted as part of a DA, the applicant for a home business shall provide a Statutory Declaration to the effect that an employee of the business will reside on the premises.

8.7 Home occupations

8.7.1 Definition

Home occupation means an occupation that is carried on in a dwelling, or in a building ancillary to a dwelling, by one or more permanent residents of the dwelling and that does not involve:

(a) The employment of persons other than those residents, or
(b) Interference with the amenity of the neighbourhood by reason of the emission of noise, vibration, smell, soot, ash, dust, waste water, waste products, grit or oil, traffic generation or otherwise, or
(c) The display of goods, whether in a window or otherwise, or
(d) The exhibition of any signage (other than a business identification sign), or
(e) The sale of items (whether goods or materials), or the exposure or offer for sale of items, by retail,

but does not include bed and breakfast accommodation, home occupation (sex services) or sex services premises.

8.7.2 Provisions of Blacktown Local Environmental Plan 2015

Under Blacktown LEP 2015 home occupations are permissible in all 4 residential zones. In the R1 General Residential and R2 Low Density Residential zones home occupations are permissible without consent. In the R3 Medium Density Residential and R4 High Density Residential zones home occupations are permitted with consent.

8.7.3 Distance separation requirements

A home occupation which is proposed to be used for the purpose of a health care practice will be determined on the basis of the development standards specified for health consulting rooms.

DAs for a home occupation - health care practice will generally only be approved by Council where the following distance separation requirements have been satisfied:

(a) The proposed site is not to be within 150m, by straight line distance, of an existing or approved health consulting room that is located in a residential zone

(b) The proposed site is not to be within 150m, by straight line distance, of a zoned business area

(c) The proposed site is not to be within 150m, by straight line distance, of an existing or approved office premises which is used by a member of the health care profession

(d) The proposed site is not to be within 150m, by straight line distance, of an existing or approved home occupation or home business which is used by a member of the health care profession.

8.7.4 Motor vehicle repairs

Council generally does not allow commercial motor vehicle repair and servicing (either of whole vehicles or of individual components thereof) as a form of home occupation in any residential zone because of the potential noise nuisance, visual intrusion and disposal of waste effects on local residential amenity.

8.7.5 Off-street car parking

Council may require additional car parking on site for a home activity, particularly where the activity involves the employment of a non-resident and client visitations occur. Health care professionals who practice from a home occupation will be required to meet the same requirements that apply to health consulting rooms.

8.7.6 Statutory declaration for home occupation

In addition to the information required to be submitted as a part of a DA, the applicant for a home activity shall provide a Statutory Declaration to the effect that the operation does not employ more than one non-resident of the premises.

8.7.7 Expansion of home occupation

If operations on an approved home occupation site expand to the extent that adjoining residential amenity is threatened, Council will require relocation to an appropriately zoned site as compliance with the definition of “home occupation” can no longer be ensured.

Appendix 1 Detailed design requirements for child care centres

1 Internal design

1.1 Internal children's areas

Sensible design of the internal layout of the centre should encourage proper maintenance, reduce damage, increase efficiency in operation and improve safety for all users. Items such as locking devices, location of power points, relationship between rooms, location and type of storerooms, the elimination of unnecessary projections and other attention to detail are important if these goals are to be achieved.

The following matters are to be addressed by the architect or designer certifying the proposal.

1.2 Playroom

Playrooms must be designed to provide appropriate and safe play areas for children and to achieve this the following should be considered:

(a) Provide the flexibility to be organised into distinct spaces for a variety of activities by the use of alcoves or relocatable shelving

(b) Provide some private areas which allow small groups of children to carry out their own activities and still be supervised

(c) Suitable flooring and soft areas should be provided to accommodate child needs and behavior

(d) Have suitable areas for children to eat and drink

(e) Ensure easy access to each child, which does not impinge upon exits

(f) Provide clear safety glass panelling on doors and windows and observation frames in interior walls to allow visual supervision from the playroom of other parts of the building and outdoor space used by the children. Children should also be able to see out (e.g. by having some window sills at 500mm above the floor)

(g) Ensure there is no step or trip point, such as a sliding door track, between the playroom and outdoor area or washroom

(h) Access to toilet facilities and active outdoor play areas should be provided

(i) Ensure that there are clear pathways between functional areas, such as kitchens and laundries, which do not cross playrooms.

1.3 Sleep room

A centre where babies under the age of 2 years are cared for must have a suitable sleep room, separate from the playroom, with adequate sleeping facilities, which are culturally appropriate for each baby. A child care centre must provide an adequate number of cots, beds, stretchers or sleeping mats (together with waterproof covers) or other culturally appropriate forms of bedding for all children who sleep while on the premises. The following are required for sleep room areas:

(a) Be in an area that is adequately ventilated

(b) Ideally each sleep room should be provided with between 3 to 6 cots to reduce disturbance of babies with different sleep patterns. There should not be more than 8 cots per sleep room

(c) At least 800mm should be provided between cots as an access area, and to reduce the spread of airborne infections, and should be designed to ensure that all children in the area are readily accessible to all staff at any given time

(d) Unrestricted viewing windows should be provided to the cot room.

1.4 Craft preparation facilities

The premises of a child care centre must have separate facilities which include a sink, bench top and lockable cupboard for use in craft activities.

These facilities should not be located next to any food preparation area or nappy change area, and should be located in each playroom.

1.5 Bottle preparation area

In centres where children under the age of 3 are cared for, provision of a suitable bottle preparation area is required. The following requirements should be considered:

(a) The bottle preparation and sterilization area should be in a separate enclosed area, which is not accessible to children but has vision into the main area

(b) The bottle preparation area should be separate from the nappy changing area

(c) Apace should be provided for refrigeration facilities for infant formulae, milk and food

(d) A cupboard that is inaccessible to children should be provided for storage of detergents and other potentially harmful substances.

1.6 Toilet and washing facilities

The sanitary facilities of a centre based children's service must comply with the requirements for a Class 9b building (Early Childhood Centres) of Clause F2.3 of the *Building Code of Australia*. Table F2.3 – 9b of the *Building Code of Australia* provides that for every 15 children or part thereof there must be:

(a) A junior toilet or adult toilet with a firm step and a junior seat.

(b) One hand basin either with a firm step, or at a height to provide reasonable child access.

All child care centres must have a toilet, hand washing and bathing facilities that are safe and appropriate to the ages of the children at the centre and must have storage facilities for the products and equipment used for the cleaning of these facilities.

Toilet facilities are to be provided for on the basis of a minimum of 1 closet fixture and wash basin for every 15 children. Current practice has shown that a figure of 1 WC per 8 children, irrespective of age, is strongly recommended. Direct access to toilet facilities or a nappy change area should also be available from cot rooms.

In addition to the above, the following matters should be incorporated into the overall design:

(a) Toilet and washroom facilities should be directly accessible to and visible from each play area and outdoor play space

(b) The floor should be washable, non-slip and graded to a floor waste

(c) Child size hand basins or water trough should be mounted between 570mm and 600mm high

(d) Suitable bathing facilities which are age appropriate

(e) At least one tap should be accessible and suitable for children with a disability (General design and construction standards for fixtures and fittings for disabled persons may be found in *Australian Standard AS1428*, particularly AS1428.3 - *Requirements for Children and Adolescents With Physical Disabilities*)

(f) Soap holders should be appropriately located and of the same number as the taps. Liquid soap dispensers over basins/troughs are recommended

(g) Hand drying facilities are to be provided, preferably by way of paper towels with a bin.

Experience has shown that toilet facilities for staff will in most cases be satisfied by 1 closet fixture and wash basin, with hot and cold water, for each sex, providing staff levels do not exceed 40 for males or 20 for females.

1.7 Hot water

Hot water from any outlet accessible to children (e.g. bath, basin or shower) at any child care centre must be regulated to keep it below the temperature at which a child can be scalded or at a temperature as prescribed in the regulations, i.e. 43.5°C.

In new centres, hot water should be provided using solar panels or other energy efficient technology wherever possible.

1.8 Nappy change facilities

The nappy changing facilities must be designed, located and maintained so as to prevent unsupervised access by children. Unobstructed vision from and into this area from adjoining areas should be available at all times.

All child care centres should provide the following facilities:

(a) A childproof cabinet that is inaccessible to children with child proof catches for storage of disinfectants and other potentially harmful substances

(b) An impervious washable surface for changing nappies, together with a mat are required – Provision for 1 in every 10 children under the age of 3

(c) Hand washing basin with elbow/wrist operated taps for adults in the immediate vicinity of the nappy changing area

(d) A sluice/contaminated waste disposal unit and sanitary facilities for the storage of soiled nappies pending laundering or disposal of nappies

(e) Facilities for the storage of clean nappies

(f) An age appropriate washing facility with temperature regulated hot and cold running water in, or adjacent to, the nappy change area

(g) Separate facilities adequate for rinsing soiled clothing and nappies.

1.9 Laundry

All child care centres must have laundry arrangements and safe sanitary facilities, whether on the premises of the children's service or through another facility, service or arrangement for laundry facility requirements:

(a) The laundry should be at least 10sq.m in size

(b) Cupboards within the laundry are to be fitted with childproof locks

(c) An impervious non-slip floor is to be provided, graded to a floor waste

(d) Flammable liquids should not be stored in the laundry, as vapour may be ignited by a spark from an electrical appliance, or by the pilot lamp of a gas water heater

(e) A separate sluicing facility/contaminated waste disposal unit should be provided for nappies

(f) Safe sanitary facilities for the storage of soiled clothes, linen and nappies before laundering or disposal

(g) At least one laundry tub with hot and cold water

(h) Installation of a washing machine.

1.10 Kitchen

Food preparation areas shall be constructed so as to demonstrate compliance with the requirements of:

(a) The *Food Act 2003* and regulations thereunder

(b) *Australian Standard AS 4674-2004 Design, Construction and Fit-out of Food Premises*.

Kitchens must be safe and appropriate for the preparation and cooking of food, washing up and cleaning and be designed and located to prevent children from gaining access. The following criteria should be considered:

(a) Floors, walls and ceilings are to be smooth, free of cracks and crevices and capable of being easily cleaned. intersections of floors and walls are to be coved where necessary under benches, wash hand basins and similar fixtures, and all machinery should be either on wheels or mounted on plinths 150mm in height

(b) All shelving and fittings are to be constructed using suitable durable materials, such as stainless steel and glass

(c) Ideally the kitchen should have a ½ clear-glassed door or other suitable smoke and heat resistant barrier to prevent entry by children.

1.11 Requirements for water facilities

(a) A kitchen should be equipped with a stove or microwave, sink, refrigerator, suitable disposal facilities and hot and cold supply water

(b) A wash hand basin is to be provided for the purpose of personal hygiene and is to be supplied with dispensed soap and disposable hand towels or electric hand dryers

(c) A separate sink is to be provided for the purpose of cleaning equipment and utensils

(d) The depth of the sink must be adequate to immerse the largest equipment to be washed, and hot water supplied to it must be a minimum of 77°C.

The design of the kitchen should also consider the following:

(a) As far as possible, kitchen staff should have a full view of the play areas (indoor and outdoor)

(b) A childproof cupboard for storing detergents and cleaning products

(c) Toilets are not to open directly to a kitchen

(d) Location of kitchens should, as far as possible, be such so as not to cause a noise nuisance to a children's sleeping area

(e) All openings from the kitchen should be fitted with tight fitting doors or shutters to inhibit the initial spread of flame, and reduce the dispersion of smoke, and by so doing increase the time available for the occupants to exit the building.

2 External children's areas

The centre should be provided with suitable outdoor spaces and facilities to ensure developmental play by children is both of benefit and capable of constant supervision. The following matters are to be addressed by the architect or designer certifying the proposal.

2.1 General considerations

7sq.m of outdoor play space per child is required. This should preferably be located north or north-east of the building, and ideally should have at least 50% shading of the area affected by summer sun, either by way of vegetation, structures or play equipment, and in accordance with the guidelines published by the New South Wales Cancer Council under the title *Shade for Child Care Services.*

All areas of the playgrounds must be capable of supervision at all times, which may involve careful selection of screening vegetation and provision of walls and the provision of as much unobstructed vision from inside the building to the external playground to improve the supervision of children. The outdoor play area should relate directly to the main indoor play areas and have direct access to the toilets.

2.2 Vegetation/landscaping

In order to ensure or protect the privacy of adjoining residences and aid in noise abatement, site landscaping, including mounding and lapped and capped timber, brick or masonry fencing may be required. Landscaping should be in keeping with adjoining developments.

All DAs for child care centres must be accompanied by a landscape plan, which is to be prepared by a landscape architect or designer. The plan is to identify the areas to be designated for landscaping which is to include a minimum of:

(a) 2m front landscaped setback

(b) 1m perimeter planting

(c) Shade structures

The landscape plan is to identify existing vegetation and plant species and trees to be retained or removed. Legal provisions for the preservation of trees are in force under Blacktown LEP 2015 and therefore Council consent is required for the removal and lopping and topping of trees. DAs may also require additional landscape documentation such as a flora and fauna report or arborist's report and applicants are to discuss requirements for landscaping with Council prior to the preparation of the DA.

Outdoor play areas and parking areas for child care centres are to be fenced with a 1.8m high noise abating fence (such as lapped and capped timber, brick or masonry fence) and adequately landscaped. Landscaping should be provided around the boundaries of the play area to act as a buffer to the fence, and enhance the aesthetic quality of the space. The composition of the fence will be determined after an acoustic report has been completed by the applicant and assessed by Council.

When proposing a child care centre, existing features of the site, including vegetation, should be conserved wherever possible. Plant species should be chosen for their suitability to the site, ease of maintenance and to be interesting to children. When assessing plant species, the following should be considered:

(a) Protection from prevailing winds

(b) Screening for privacy

(c) Shelter and enclosure

(d) Shade in outdoor play areas

(e) Reduction of reflection from bright surfaces

(f) Emphasis of pedestrian and vehicular routes

(g) Ensure visibility of play areas

(h) Plants that may be toxic, allergic, prickly or otherwise unsafe, are not to be used

(i) Planting design should be functional, educational and visually pleasing.

2.3 Playgrounds

A variety of surfaces, such as grass, sand, hard paving and mounding, should be provided in playgrounds. The heat absorption qualities and texture of materials must be suitable, with surfaces such as bitumen being avoided due to surface temperatures exceeding 45°C in summer.

The site should have space and design for the following equipment and facilities:

(a) An open flat area for running, active play and mobile equipment

(b) Grassed areas

(c) Quiet play areas

(d) Suitable play equipment with impact absorbent material beneath

(e) Flat soft areas for babies

(f) Secure fencing (fencing provision should be discussed with Council at DA stage)

(g) A large sandpit. The sandpit should allow for 0.5sqm per child, be not less than

12sq.m overall, and in the order of 600mm in depth. It should also be provided with a cover to prevent use by animals and protect it from debris, and be suitably drained and shaded, with suitable supervision space

(h) Some paved surfaces for wheeled toys. Playground surfacing should also be of an acceptable standard to suit the needs of children and should comply with the requirements of Australian and New Zealand Standard AS/NZS 4422:1996 Playground Surfacing – Specifications, requirements and test method.

2.4 Playground equipment

Outdoor equipment is to comply with the current Australian Standards, notably *AS1924 Playground Equipment for Parks, Schools and Domestic Use* and *AS2155 Playgrounds - Guide to siting and to installation and maintenance of equipment.*

To avoid loss of privacy for neighbours surrounding child care centres, all play equipment such as cubby houses, trampolines and slides should not overlook neighbours' properties. Also, shade structures should not be placed in an elevated position close to boundary fences, causing visual and shadow impacts.

Playground equipment must not constitute a hazard and factors such as height, rough edges, stability and quality should be taken into consideration.

2.5 Fencing and gates

The outdoor play area must be fenced on all sides by fencing having a minimum height of 1.8m. The fence should be designed to prevent children scaling or crawling under it, and safe from other dangers. Colorbond fencing is discouraged in child care centres as lapped and capped timber, brick or masonry fencing is preferred.

No play equipment should be located adjacent to a fence if, by doing so, it reduces the effective height of the fence and enables it to be scaled.

All gates leading to or from play areas should be equipped with child proof self-locking mechanisms.

2.6 Storage facilities

Indoor and outdoor storerooms should be provided for the safekeeping of indoor and outdoor equipment and be made inaccessible to children.

Storage is to be provided in accordance with the regulation. Consideration should be given to the location of storage facilities and the impact on adjacent properties. Therefore, storage areas should seek to meet the following requirements:

(a) The movement and storage of equipment should be located so as to not interfere with the quality of surrounding residential amenity

(b) Consideration is to be given to the access and entry to a storage area, and should preferably be accessible from an inward facing direction to the site

(c) The setback distance from the edge of the site should preferably be 3m, but also in keeping with the setback distance of the rest of the building. This requirement is at the discretion of Council.

3 Safety provisions

Fire safety within the building is to satisfy the requirements of the *Building Code of Australia* for a Class 9 building. The following information provides guidance as to the issues which need to be addressed, and general heads of consideration, not as an overall design tool for fire safety. Fire safety details are to be submitted with the Construction Certificate application.

The following matters are to be addressed by the architect or designer certifying the proposal.

3.1 Egress

It is essential that in an emergency clearly defined exits and paths of travel are provided. To achieve this, the exit system, particularly for this type of use, must be designed with the limitations of the occupants in mind, and considering the propensity for occupants to exit the building via the door by which they entered. Specific requirements for egress systems are detailed in the *Building Code of Australia*, however the following should be considered:

(a) At least 2 exits should be available and maintained clear of obstructions at all times

(b) Locking devices must be readily operable at all times without use of a key from the side facing a person seeking to exit the building

(c) The latching device on a door should only be operated by way of a single-handed action on a single device located between 900mm and 1.2m from the floor. All padlocks or the like are not to be used on exit doors

(d) Doors that swing against the direction of egress must be provided with a device which can hold them in the fully open position

(e) Sliding doors, preferably fixed from the ceiling, must be easily operated and the direction of operation should be indicated on the door (e.g. by an arrow). Ideally sliding door tracks at floor level should be recessed to avoid tripping.

3.2 Early warning systems

Single point smoke detectors should comply with the appropriate *Australian Standards*. The preferred detector is one that is hard wired into the mains power system, with back-up battery to ensure the detector is energised at all times.

As an adjunct to early warning systems, an evacuation or response plan should be implemented upon activation of the alarm, with specified staff members assuming pre-determined roles and ensuring a safe and orderly evacuation. The plan should ensure that sufficient staff are trained to act in an emergency, and regular drills are essential. Further information may be obtained from *Australian Standard AS3745 Emergency Control Organisations and Procedures for Buildings*, or by contacting the NSW Fire Brigades. Emergency lighting and warning system specifics are outlined in the *Building Code of Australia.*

3.3 Exit signs and emergency lights

As an aid to orderly evacuation of any building, emergency lights and exit signs may be invaluable. The production of smoke during fire may cause confusion amongst building users, particularly those unfamiliar with the building. The installation of appropriate emergency lighting and exit signs will aid in identification of paths of travel to exit points, reduce evacuation time from the building, and should be implemented in accordance with the requirements of the *Building Code of Australia* based on area and users.

3.4 Fire fighting/protection

Fire protection measures essentially involve fire extinguishment. The equipment or installations involved should be used by the occupants to attack small fires, and prevent or arrest their escalation. Firefighting provision is to satisfy the requirements of the *Building Code of Australia*. All child care centres should have:

(a) Appropriately located fire detectors

(b) A fire blanket that is kept adjacent to cooking facilities

(c) Appropriately located fire extinguishers.

Furniture, floor coverings, furnishings and decorating materials shall comply with the requirements of specification *C1.10* of the *Building Code of Australia*.

Extinguishers should be installed on wall brackets, and generally near the exit door of the room they protect, or, where the room has hazardous installations or processes, just outside the door.

If the seals are broken or the extinguisher is used, it should be serviced immediately to ensure it is available for use in any future emergency.

It is important to provide extinguishers suitable for the hazard they are required to combat. Water extinguishers or hose reels may present a greater danger to the user if used on electrical or burning liquid fires, similarly carbon dioxide extinguishers are of limited use on fires of large amounts of paper or similar products. Location, and alternate forms of fire fighting facilities, may best be discussed with Council prior to installation.

All fire equipment must be tested in accordance with the requirements of *Australian Standard 2444 and Australian Standard 1851.1* for Level 1 service on a 6 monthly basis and be kept in proper working condition.

3.5 First aid

Child care centres must be equipped with a suitable and fully stocked first-aid kit of a kind approved by the WorkCover Authority under relevant Acts and regulations, i.e. *Occupational Health and Safety Act 2000. T*he first aid kit must be kept in a locked cupboard, and the key to the cupboard must be kept in a position immediately adjacent to the cupboard that is readily accessible to staff. A resuscitation flow chart must be displayed in a prominent position in all child care centres.